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An Act to consolidate the Diseases of Animals Acts, 1894 to 1937, and certain other enactments relating to diseases of animals. [26th October 1950.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

GENERAL

General powers of Minister to make orders and to authorise local authorities to make regulations

General
powers of
Minister.

1.—(1) The Minister may make such orders as he thinks fit, subject and according to the provisions of this Act,—

(a) generally for the better execution of this Act, or for the purpose of in any manner preventing the spreading of disease ; and

(b) in particular for the several purposes set out in this Act.

(2) Orders made by the Minister may provide—

(a) for prescribing modes of cleansing and disinfection ;

(b) for prescribing and regulating the marking of animals ;

(c) for prescribing and regulating the seizure, detention and disposal of a diseased or suspected animal exposed, carried, kept or otherwise dealt with in contravention of an order of the Minister ; and for prescribing and regulating the liability of the owner or consignor or consignee of such animal to the expenses connected with the seizure, detention and disposal thereof ;

(d) for securing a proper supply of water and food to animals during any detention thereof ;

(e) for prescribing and regulating the destruction, burial, disposal or treatment of carcases of animals dying while diseased or suspected ;

(f) for prohibiting or regulating the digging up of carcases which have been buried ;

(g) for prescribing and regulating the disinfection of the clothes of persons coming in contact with or employed about diseased or suspected animals and the use of precautions against the spreading of disease by such persons ; and

(h) for prescribing and regulating the payment and recovery of expenses in respect of animals.

2. The Minister may make such orders as he thinks fit, subject and according to the provisions of this Act, for authorising a local authority to make regulations for any of the purposes of this Act or of an order of the Minister subject to such conditions, if any, as the Minister, for the purposes of securing uniformity and the due execution of this Act, thinks fit to prescribe.

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—cont.

Power to
authorise the
making of
regulations
by local
authorities.

Eradication of disease

3.—(1) The Minister may, in accordance with a scheme made by him and approved by the Treasury, pay to the owner of any herd of cattle in Great Britain such sums as the Minister thinks fit to expend for the purpose of securing so far as practicable that the herd will be free from tuberculosis.

Payments for
the eradication
of bovine
tuberculosis.

(2) The powers conferred by the foregoing subsection shall be exercisable for a period ending on the thirtieth day of September, nineteen hundred and fifty-eight:

Provided that the said period may be extended for five years by order made by the Minister with the approval of the Treasury, on not more than three successive occasions, so as to continue for five, ten or fifteen years, as the case may be, from the thirtieth day of September, nineteen hundred and fifty-eight.

No order shall be made under this subsection unless a draft thereof has been laid before Parliament and has been approved by a resolution of each House of Parliament.

(3) The power of making a scheme under this section, or any subsequent scheme amending such a scheme, shall be exercisable by statutory instrument, and any such statutory instrument shall be subject to annulment in pursuance of a resolution of either House of Parliament.

4. The Minister may, with the approval of the Treasury, expend such sums as he thinks fit with the object of eradicating as far as practicable diseases of animals in Great Britain:

General power
of Minister to
expend money
for the

Provided that the Minister shall not after the expiration of the period mentioned in the last foregoing section have power under this section to make any payment which until then he is empowered to make by virtue of the last foregoing section.

eradication of
diseases of
animals.

In this section the expression "animals" includes horses and the expression "disease" is not restricted by its definition in this Act.

5. The Minister may make orders—

- (a) declaring any area as respects which he is satisfied that a substantial majority of the cattle therein are free from any particular disease to be an eradication area for purposes connected with the control of that disease;

Eradication
areas and
attested areas
for cattle.

PART I
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- (b) declaring any area as respects which he is satisfied that any particular disease of cattle is for practical purposes non-existent therein to be an attested area for purposes connected with the control of that disease; and
- (c) prohibiting or regulating the movement of cattle into, out of or within any area which is for the time being an eradication area or an attested area.

**Power to
obtain
information.**

6. For the purpose of obtaining information required for the purposes of sections three and four of this Act the Minister may authorise in writing any veterinary inspector or other officer of the Ministry to inspect animals (including horses).

Any person so authorised may, for the purpose of any inspection to be carried out by him, at all reasonable times, upon production of his authority on demand, enter on any land or premises and apply such tests and take such samples as he considers necessary.

Offences.

7.—(1) Any person who knowingly or recklessly makes any false statement for the purpose of obtaining for himself or any other person any sum payable under sections three or four of this Act, shall, unless in the case of an indictable offence he is indicted for the offence, be liable on summary conviction to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months, or to both such imprisonment and fine.

(2) Any person who obstructs or impedes any person duly authorised under the last foregoing section to make any inspection shall be liable on summary conviction in the case of a first offence to a fine not exceeding twenty pounds and, in the case of a second or subsequent offence punishable under this subsection, to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding one month, or to both such imprisonment and fine.

In considering for the purposes of this subsection or subsection (2) of section thirty of the Agriculture Act, 1937, whether an offence is or is not a first offence, references to an offence punishable under this subsection or that subsection shall be taken as including references to offences punishable under that subsection or this subsection, as the case may be.

*Separation and treatment of diseased animals and notice
of disease***Separation
of diseased
animals, and
notice of
disease.**

8.—(1) Every person having in his possession or under his charge an animal affected with disease shall—

- (a) as far as practicable keep that animal separate from animals not so affected; and

(b) with all practicable speed give notice of the fact of the animal being so affected to a constable of the police force for the police area wherein the animal so affected is.

(2) The constable to whom notice is given shall forthwith give information thereof to such person or authority as the Minister by general order directs.

(3) The Minister may make such orders as he thinks fit for prescribing and regulating the notice to be given to or by any person or authority in case of any particular disease or in case of the illness of an animal, and for supplementing or varying for those purposes any of the provisions of this section.

(4) The local authority shall pay to a veterinary surgeon or veterinary practitioner, in respect of every notification of disease made by him to the local authority in pursuance of an order under this Act requiring such a notification such fee not exceeding two shillings and sixpence as may be prescribed by the order.

9. For the purpose of preventing the spread of disease, the Minister may cause to be treated with serum or vaccine, or with both serum and vaccine, any animal or bird which has been in contact with a diseased animal or bird or which appears to the Minister to be or to have been in any way exposed to the infection of disease.

Treatment with serum or vaccine of animals or birds exposed to infection.

Infected places and areas

10.—(1) The Minister may make such orders as he thinks fit, subject and according to the provisions of this Act, for prescribing the cases in which places and areas are to be declared to be infected with a disease and the authority, mode, and conditions by, in, and on which declarations in that behalf are to be made, and the effect and consequences thereof, and the duration and discontinuance thereof, and other matters connected therewith.

General provisions as to infected places and areas.

(2) Every place or area so declared infected shall be an infected place or area for the purposes of this Act.

(3) Notwithstanding anything in this Act, where the Minister, on inquiry, and after communication with the local authority, is satisfied that a declaration of a place being an infected place has been made in error respecting the existence or past existence of disease, or respecting the limits of a place, or respecting any other matter of fact whereon the declaration proceeded, the Minister may by order cancel the declaration as regards the infected place, or as regards any part thereof, as he thinks fit.

(4) Where, in accordance with the provisions of this Act, a place or an area or a portion of an area is declared free from a disease, or a declaration of a place being an infected place is

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cancelled as regards the place or as regards any part thereof, then, from the time specified in that behalf by the Minister or a local authority, as the case may be, the place, or area or that portion of the area or that part of the place, shall cease to be, or to be in, an infected place or area.

(5) Any order or notice of the following description, that is to say—

- (a) an order of the Minister or of a local authority declaring a place to be an infected place or area, or declaring a place or area, or a portion of an area, to be free from disease, or cancelling a declaration ; or
- (b) a notice served in pursuance of directions of the Minister or of a local authority by virtue of an order made under this section,

shall be conclusive evidence to all intents of the existence or past existence or cessation of the disease, or of the error, and of any other matter whereon the order or notice proceeds.

Orders relating
to infected
places and
areas.

11. The Minister may make such orders as he thinks fit, subject and according to the provisions of this Act, for all or any of the following purposes,—

- (i) for prescribing and regulating the publication by placards, handbills, or otherwise, in the immediate neighbourhood of a place or area declared infected, of the fact of such declaration ;
- (ii) for prohibiting or regulating the movement of animals and persons into, within, or out of an infected place or area ;
- (iii) for prescribing and regulating the isolation or separation of animals being in an infected place or area ;
- (iv) for prohibiting or regulating the removal of carcasses, fodder, litter, utensils, pens, hurdles, dung, or other things into, within, or out of an infected place or area ;
- (v) for prescribing and regulating the destruction, burial, disposal, or treatment of carcasses, fodder, litter, utensils, pens, hurdles, dung, or other things, being in an infected place or area, or removed thereout ;
- (vi) for prescribing and regulating the cleansing and disinfection of infected places and areas, or parts thereof ;
- (vii) for prescribing and regulating the disinfection of the clothes of persons being in an infected place, and the use of precautions against the spreading of disease by such persons.

Power to
exclude
strangers.

12. A person owning or having charge of any animals in a place or area declared infected with any disease may affix, at or near the entrance to a building or inclosure in which the animals are, a notice forbidding persons to enter therein without the per-

mission mentioned in the notice ; and thereupon it shall not be lawful for any person, not having by law a right of entry or way into, on, or over that building or inclosure, to enter or go into, on, or over the same without that permission.

Power to slaughter

13.—(1) The Minister shall cause to be slaughtered all animals affected with cattle plague.

(2) Where an animal is or has been in the same shed, stable, herd or flock as, or in contact with, an animal affected with cattle plague, the Minister may, if he is satisfied that the slaughter of the animal is necessary for preventing the spreading of cattle plague, cause the animal to be slaughtered.

(3) The Minister may, if he thinks fit, in any case cause to be slaughtered—

- (a) any animals suspected of being affected with cattle plague, or being in a place infected with cattle plague ;
- (b) any animals being in such parts of an area infected with cattle plague as are not comprised in a place infected with cattle plague (but in this last-mentioned case subject to such regulations as the Treasury by statutory instrument think fit to make).

(4) The Minister shall for animals slaughtered under this section pay compensation as follows—

- (a) where the animal slaughtered was affected with cattle plague, the compensation shall be one half of its value immediately before it became so affected, but so that the compensation does not in any such case exceed twenty pounds ; and
- (b) in every other case the compensation shall be the value of the animal immediately before it was slaughtered, but so that the compensation does not in any case exceed forty pounds.

14.—(1) The Minister shall cause to be slaughtered all cattle affected with pleuro-pneumonia. Pleuro-pneumonia.

(2) The Minister may, if he thinks fit, in any case cause to be slaughtered—

- (a) any cattle suspected of being affected with pleuro-pneumonia ; and
- (b) any cattle which are or which have been in the same field, shed, or other place, or in the same herd or otherwise in contact with cattle affected with pleuro-pneumonia, or which appear to the Minister to have been in any way exposed to the infection of pleuro-pneumonia.

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—cont.

(3) The Minister shall for cattle slaughtered under this section pay compensation as follows—

- (a) where the animal slaughtered was affected with pleuro-pneumonia, the compensation shall be three-fourths of the value of the animal immediately before it became so affected, but so that the compensation does not in any such case exceed thirty pounds ; and
- (b) in every other case the compensation shall be the value of the animal immediately before it was slaughtered, but so that the compensation does not in any case exceed forty pounds.

(4) Where the Minister has decided that any head of cattle is to be slaughtered under this section, the Minister shall, if the owner of such head of cattle by notice in writing so requires, cause the same to be slaughtered within twenty-one days after the receipt of the notice.

**Foot-and-
mouth
disease.**

15.—(1) The Minister may, if he thinks fit, in any case cause to be slaughtered—

- (a) any animals affected with foot-and-mouth disease, or suspected of being so affected ; and
- (b) any animals which are or have been in the same field, shed, or other place, or in the same herd or flock, or otherwise in contact with animals affected with foot-and-mouth disease, or which appear to the Minister to have been in any way exposed to the infection of foot-and-mouth disease.

(2) The Minister shall for animals slaughtered under this section pay compensation as follows—

- (a) where the animal slaughtered was affected with foot-and-mouth disease the compensation shall be the value of the animal immediately before it became so affected :
- (b) in every other case the compensation shall be the value of the animal immediately before it was slaughtered.

Swine-fever.

16.—(1) The Minister may, if he thinks fit, in any case cause to be slaughtered—

- (a) any swine affected with swine-fever, or suspected of being so affected ; and
- (b) any swine which are or have been in the same field, pig-sty, shed, or other place, or in the same herd, or otherwise in contact with swine affected with swine-fever, or which appear to the Minister to have been in any way exposed to the infection of swine-fever.

(2) The Minister shall for animals slaughtered under this section pay compensation as follows—

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—cont.

- (a) where the animal slaughtered was affected with swine-fever, the compensation shall be one half of the value of the animal immediately before it became so affected ;
- (b) in every other case the compensation shall be the value of the animal immediately before it was slaughtered.

17.—(1) The Minister may, if he thinks fit, cause to be slaughtered any animal which— Other diseases.

- (a) is affected or suspected of being affected with any disease to which this section applies ; or
- (b) has been exposed to the infection of any such disease.

(2) This section applies to such diseases of animals as may from time to time be directed by order of the Minister.

(3) The Minister shall pay for animals slaughtered under this section compensation of such amount as may be determined in accordance with scales prescribed by order of the Minister made with the approval of the Treasury.

A statutory instrument containing an order under this subsection shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(4) In this section the expression “ animals ” includes horses and the expression “ disease ” is not restricted by its definition in this Act.

18. The Minister may, for the purposes of his powers under this Act relating to the slaughter by him of animals, employ such additional inspectors, valuers and other persons, and at such remuneration, and may incur such expenses, as, subject to the sanction of the Treasury, he thinks necessary. Additional officers and expenses for purposes of slaughter.

19.—(1) The Minister may, notwithstanding anything in this Act, reserve for observation and treatment an animal liable to be slaughtered under this Act at the direction of the Minister but subject to payment of compensation by the Minister as in case of actual slaughter. General provisions relative to slaughter and compensation.

(2) Where an animal has been slaughtered under this Act at the direction of the Minister, the carcase of the animal shall belong to the Minister and shall be buried, or sold, or otherwise disposed of by the Minister, or as he directs, as the condition of the animal or carcase and other circumstances may require or admit.

(3) If, in any case, the sum received by the Minister on sale of a carcase under this section exceeds the amount paid for

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compensation to the owner of the animal slaughtered, the Minister shall pay that excess to the owner, after deducting reasonable expenses.

(4) Where an animal has been slaughtered under this Act at the direction of the Minister, the Minister may use for the burial of the carcase any ground in the possession or occupation of the owner of the animal and suitable in that behalf, or any common or uninclosed land.

(5) If the owner of an animal slaughtered under this Act at the direction of the Minister has an insurance on the animal, the amount of the compensation awarded to him under this Act may be deducted by the insurers from the amount of the money payable under the insurance before they make any payment in respect thereof.

(6) Notwithstanding anything in this Act, the Minister may, if he thinks fit, withhold, either wholly or partially, compensation or other payment in respect of an animal slaughtered under this Act at his direction, where the owner or the person having charge thereof has, in the judgment of the Minister, been guilty, in relation to the animal, of an offence against this Act, or where the animal, being an imported animal, was in his judgment diseased at the time of its landing.

(7) The Minister may make such orders as he thinks fit for all or any of the following purposes—

- (a) for prescribing the mode of ascertainment of the value of an animal slaughtered, or liable to be slaughtered, at the direction of the Minister ;
- (b) for regulating applications for, and the mode of payment of, compensation ;
- (c) for prescribing and regulating the destruction, burial, disposal or treatment of carcasses of animals slaughtered at the direction of the Minister.

Regulation of movement of animals, etc.

Regulation of
movement of
animals, etc.

20. The Minister may make such orders as he thinks fit, subject and according to the provisions of this Act, for all or any of the following purposes—

- (i) for prohibiting or regulating the exposure of diseased or suspected animals in markets or fairs or sale-yards, or other public or private places, where animals are commonly exposed for sale, and the placing thereof in lairs or other places adjacent to or connected with markets or fairs, or where animals are commonly placed before exposure for sale ;
- (ii) for prohibiting or regulating the sending or carrying of diseased or suspected animals, or of dung or other thing likely to spread disease, or the causing the same

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- to be sent or carried, on railways, canals, rivers, or inland navigations, or in coasting vessels, or otherwise ;
- (iii) for prohibiting or regulating the carrying, leading, or driving of diseased or suspected animals, or the causing them to be carried, led, or driven, on highways or thoroughfares, or elsewhere ;
 - (iv) for prohibiting or regulating the placing or keeping of diseased or suspected animals on commons or uninclosed lands, or in fields or other places insufficiently fenced, or on the sides of highways ;
 - (v) for prohibiting or regulating the movement of animals, and the removal of carcases, fodder, litter, dung, and other things, and for prescribing and regulating the isolation of animals newly purchased ;
 - (vi) for prescribing and regulating the issue and production of licences respecting movement and removal of animals and things ;
 - (vii) for prohibiting or regulating the holding of markets, fairs, exhibitions, and sales of animals ;
 - (viii) for prescribing and regulating the cleansing and disinfection of places used for the holding of markets, fairs, exhibitions, or sales of animals, or for lairage of animals, and yards, sheds, stables, and other places used for animals ;
 - (ix) for prescribing and regulating the cleansing and disinfection of vessels, vehicles, and pens and other places, used for the carrying of animals for hire or purposes connected therewith ;
 - (x) for protecting animals from unnecessary suffering during inland transit ; and
 - (xi) for prohibiting, absolutely or conditionally, the use, for the carrying of animals or for any purpose connected therewith, of a vessel, vehicle, or pen or other place in respect whereof, or of the use whereof, a penalty has been recovered from any person for an offence against this Act.

21.—(1) The Minister shall by order make such provision as he thinks necessary or expedient respecting the case of animals found to be affected with pleuro-pneumonia or foot-and-mouth disease—

- (i) while exposed for sale or exhibited in a market, fair, sale-yard, place of exhibition, or other place ; or
- (ii) while placed in a lair or other place before exposure for sale ; or
- (iii) while in transit or in course of being moved by land or by water ; or
- (iv) while being in a slaughter-house or place where animals are slaughtered or are kept with a view to slaughter ; or

Pleuro-pneumonia or foot-and-mouth disease found in animals in transit.

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—cont.

- (v) while being on common or uninclosed land ; or
- (vi) generally, while being in a place not in the possession or occupation or under the control of the owner of the animals.

(2) The Minister shall by orders under this section make such provision as he thinks fit for the consequences under this Act of animals being so found in the circumstances aforesaid, as well with regard to the animals as with regard to the places where they are when so found and other places, and with regard to animals being or having been in the same shed or stable, herd or flock as, or in contact with, animals so found.

(3) The Minister may, by orders under this section relating to particular places, make such provision as he thinks fit for the consequences aforesaid.

(4) Every order under this section shall have full effect notwithstanding any provision of this Act requiring the declaration of a place infected with pleuro-pneumonia or foot-and-mouth disease or relating to any consequence thereof, or to any matter connected therewith, and notwithstanding any other provision whatsoever of this Act.

**Provision of
water and
food at
railway
stations.**

22.—(1) The British Transport Commission and every railway company shall make a provision, to the satisfaction of the Minister, of water and food, or either of them, at such railway stations as the Minister, by general or specific description, directs, for animals carried, or about to be or having been carried, on the railway of the Commission or company.

(2) The water and food so provided, or either of them, shall be supplied to any such animal by the Commission or company carrying it, on the request of the consignor or of any person in charge thereof.

(3) As regards water, if, in the case of any animal, such a request is not made, so that the animal remains without a supply of water for twenty-four consecutive hours, the consignor and the person in charge of the animal shall each be guilty of an offence against this Act ; and it shall lie on the person charged to prove such a request and the time within which the animal had a supply of water :

Provided that the Minister may, if he thinks fit, by order prescribe any other period, not less than twelve hours instead of the period of twenty-four hours aforesaid, either generally, or in respect of any particular kind of animals.

(4) The Commission or company supplying water or food under this section may make in respect thereof such reasonable charges (if any) as the Minister by order approves, in addition to such charges as they are for the time being authorised to make in respect of the carriage of animals.

The amount of those additional charges accrued due in respect of any animal shall be a debt from the consignor and from the consignee thereof to the Commission or company, as the case may be, and shall be recoverable by the Commission or company, as the case may be, from either of them, with costs, by proceedings in any court of competent jurisdiction.

The Commission or company, as the case may be, shall have a lien for the amount thereof on the animal in respect whereof the same accrued due, and on any other animal at any time consigned by or to the same consignor or consignee to be carried by the Commission or company, as the case may be.

(5) In this section the expression "railway company" includes a company or person working a railway under lease or otherwise.

Carriage of animals by sea

23. The Minister may make such orders as he thinks fit— Carriage of animals by sea.

- (a) for prohibiting the conveyance of animals by any specified vessel to or from any port in the United Kingdom for such time as the Minister may consider expedient;
- (b) for ensuring for animals carried by sea a proper supply of food and water and proper ventilation during the passage and on landing;
- (c) for protecting them from unnecessary suffering during the passage and on landing.

Import of animals

24.—(1) The Minister may, whenever he deems it expedient so to do, for the purpose of preventing the introduction of disease into Great Britain, make orders for prohibiting the landing of animals or of any specified kind thereof, or of carcasses, fodder, litter, dung, or other thing brought from any specified country out of Great Britain or any specified part of any such country. Orders prohibiting import of animals, etc.

(2) The Minister shall prohibit the landing of animals or of any specified kind thereof whenever he is not satisfied with respect to any such country or any specified part thereof, that having regard to the sanitary condition of the animals therein or imported therefrom, to the laws made by such country for the regulation of the importation and exportation of animals, and for the prevention of the introduction or spreading of disease, and to the administration of such laws, the circumstances are such as to afford reasonable security against the importation therefrom of animals affected with foot-and-mouth disease.

PART I—*cont.*

Animals
allowed to
be imported
to be
slaughtered
on landing.

Import of
pedigree
animals
allowed
without
slaughter but
subject to
quarantine.

25. Save as otherwise provided by the following provisions of this Act, Part I of the First Schedule to this Act (which requires animals to be slaughtered on landing) and Part III of that Schedule (which contains ancillary provisions) shall apply to all animals allowed to be imported.

26.—(1) The Minister may make orders for allowing, subject to such conditions as may be prescribed by any such order, any cattle, sheep, goats or swine brought from any part of the territories to which this section applies, which are shown to his satisfaction to be there registered as pedigree stock in a herd or flock book recognised by him after consultation with the Royal Agricultural Society of England and the Royal Highland and Agricultural Society of Scotland, to be landed in Great Britain without being subject to the provisions of Part I of the First Schedule to this Act (which requires animals to be slaughtered on landing); and Part II of the First Schedule to this Act (which requires animals to be kept in quarantine) and Part III of that Schedule (which contains ancillary provisions) shall apply to animals allowed to be landed under this section:

Provided that no order shall be made under this section except with respect to animals brought from any part of the territories to which this section applies in which pedigree animals brought from Great Britain are allowed to be landed either unconditionally or subject to conditions (including rates of import duties) which in the opinion of the Minister are not unduly restrictive.

(2) The territories to which this section applies are His Majesty's dominions, the Republic of Ireland, India, any territory under His Majesty's protection and any territory in respect of which a mandate is being exercised by the Government of any part of His Majesty's dominions.

For the purposes of the Mandated and Trust Territories Act, 1947, this subsection shall be deemed to be contained in an Act of an earlier session than that Act.

Import in
special cases
allowed
without
slaughter
but subject
to quarantine.

27.—(1) The Minister may make such orders as he thinks fit for allowing the landing of any imported animals intended for exhibition, or for other exceptional purposes, and for allowing such animals to be landed without being subject to the provisions of Part I of the First Schedule to this Act (which requires animals to be slaughtered on landing); and Part II of the First Schedule to this Act (which requires animals to be kept in quarantine) and Part III of that Schedule (which contains ancillary provisions) shall apply to any animals so allowed to be landed.

(2) Every order made under this section shall be forthwith laid before both Houses of Parliament.

28.—(1) The Second Schedule to this Act (which regulates the movement of imported cattle) shall have effect with respect to all cattle:

PART I
—cont.

Provided that the provisions of the said Schedule shall not have effect with respect to cattle allowed to be landed under section twenty-six of this Act except in so far as they may be applied with or without modifications by the order allowing them to be landed.

Regulation
of movement
of imported
cattle.

(2) The Minister may by order alter or modify any of the provisions of the said Schedule if he considers it necessary or expedient so to do, and the alterations or modifications are such as in his opinion will not diminish or prejudice the protection against the risk of the spread of disease which is afforded by the said provisions as enacted in the said Schedule:

Provided that no such alteration or modification shall reduce the period of detention prescribed by those provisions.

29.—(1) Subject to the provisions of this section, Canadian cattle may, if the conditions specified in this section are fulfilled, be landed in Great Britain without being required to be dealt with and slaughtered in accordance with the provisions of Part I of the First Schedule to this Act:

Import of
Canadian
cattle allowed
without
slaughter.

Provided that the Minister may require any such cattle to be slaughtered as aforesaid, if in his opinion they could be used for breeding, and are not suitable for that purpose.

(2) The conditions to be fulfilled for the purposes of this section are as follows:—

- (a) the cattle must before shipment have been marked in such manner as the Minister may prescribe, and must have been shipped from a port in Canada:
- (b) the vessel to be used for the voyage must have been inspected by the representative of the Minister in Great Britain, or by the duly authorised representative of the Government of Canada, and found to be suitable and properly fitted and equipped for the humane treatment of the cattle during the voyage, and the avoidance of unnecessary suffering by the cattle:
- (c) the Minister must be satisfied—
 - (i) that the cattle were for a period of one clear day immediately before shipment kept separate from other animals, and were examined from time to time during that period by a duly authorised veterinary officer of Canada, and in particular were thoroughly so examined immediately before shipment, and that on such examination no animal examined was found to be affected with cattle plague, pleuro-pneumonia, or foot-and-mouth disease;

PART I
—cont.

(ii) that the cattle were not at the time of shipment affected with mange or any other disease which is declared by the Minister to be a disease within the meaning of this provision ;

(iii) that, if at any time within twenty-eight days before the shipment of the cattle the vessel in which the cattle are brought to Great Britain had had on board any animal which had been exported or carried coastwise from any port or place in any country other than Great Britain or Canada, or had entered or been within any such port or place, the vessel was before the shipment of the cattle effectively cleansed and disinfected to the satisfaction of the duly authorised representative of the Government of Canada ;

(iv) that the vessel did not during the voyage enter any port or place outside Great Britain :

(d) the cattle must be landed at a port and at a landing place approved by the Minister for the purposes of this section.

(3) Cattle landed under this section shall be detained at the landing place at which they are landed and there isolated from all other animals for such period, commencing from the time at which the landing of the cattle is completed, as may be required for the thorough examination of the cattle by veterinary inspectors and the issue of licences for their movement, and no cattle shall be moved from the landing place unless and until the movement is authorised by a licence granted in accordance with the provisions of the Second Schedule to this Act.

(4) If, on the examination of any cattle landed under this section, the veterinary inspector suspects any animal of being affected with cattle plague, pleuro-pneumonia, or foot-and-mouth disease, he shall cause all the cattle then in the landing place to be detained therein until he has satisfied himself as to whether the suspected animal is or is not so affected, and for the purposes of the examination the inspector may cause the suspected animal to be slaughtered.

(5) If it is found on any such examination that any animal is affected with any such disease as aforesaid, the owner or person in charge of any cattle then in the landing place shall cause all those cattle, as having been exposed to the infection of the disease, to be slaughtered within such time as the veterinary inspector may fix, and in any such case none of the cattle shall be moved from the landing place unless in the opinion of the inspector it is necessary so to do for the purpose of slaughter and then only in accordance with such conditions, if any, as may be imposed by the licence authorising the movement.

PART I
—cont.

(6) If the person whose duty it is under the last foregoing subsection to cause any cattle to be slaughtered fails to cause the cattle to be slaughtered within the time fixed in that behalf, the Minister may, but without prejudice to the liability of that person to proceedings for an offence under this Act, cause the cattle to be slaughtered and to be disposed of in such manner as he thinks fit, and any sum received by the Minister in respect of the sale of the carcasses of any cattle so slaughtered shall, after the deduction therefrom of the expenses of slaughter and disposal and the amount of any importation fees, be paid to the owner of the cattle.

(7) The Minister may by order suspend the operation of this section during any period during which he has reason to believe that cattle plague, pleuro-pneumonia, or foot-and-mouth disease exists in Canada, and for such further period after any such disease has ceased so to exist as, in his opinion, is necessary for the purpose of avoiding the risk of the introduction of the disease into Great Britain.

30. The Minister may by order authorise any Canadian animals, other than cattle, to be landed in Great Britain without being subject to the provisions of Part I of the First Schedule to this Act (which requires animals to be slaughtered on landing) if the animals are landed in accordance with such conditions, to be prescribed in the order, as may, in the opinion of the Minister, be necessary or expedient for the prevention of the introduction of disease into Great Britain.

Import of other
Canadian
animals
allowed
without
slaughter.

A draft of any statutory instrument containing an order made under this section shall be laid before Parliament.

31.—(1) Except to such extent as the Minister may by order direct the First Schedule to this Act shall not apply to animals brought to Great Britain from Ireland or any part thereof:

Special
provision for
animals from
Ireland.

Provided that if the Minister is satisfied that cattle plague, pleuro-pneumonia or foot-and-mouth disease exists or has recently existed in, or that adequate provision is not made for the prevention of the introduction of any such disease into, any part of Ireland he may by order prohibit the landing in Great Britain of animals or any class of animals brought from Ireland or any part thereof, or may apply the provisions of the First Schedule to this Act to animals or any class of animals so brought with such modifications, if any, as he may think necessary or expedient.

(2) A draft of any statutory instrument containing an order made under this section (other than an order prohibiting the landing of animals or an order consequential on the making of any such order of prohibition) shall be laid before Parliament.

PART I**—cont.**

Special
provision for
animals from
Channel
Islands and
Isle of Man.

Regulation
of ports and
imported
animals.

32. In relation to animals brought from the Channel Islands or the Isle of Man, the Minister may, if he thinks fit, by order or by licence, alter or add to the provisions of the First Schedule to this Act relating to slaughter or to quarantine, as the case may require.

33.—(1) The Minister may make such orders as he thinks fit, subject and according to the provisions of this Act, generally for the better execution of this Act in relation to imported animals, carcases, fodder, litter, dung, or other things, or for the purpose of in any manner preventing the introduction or spreading thereby of disease and in particular—

- (i) for prescribing the ports at which alone imported animals may be landed ;
- (ii) for defining the limits of ports for the purposes of this Act ;
- (iii) for defining parts of ports ;
- (iv) for prohibiting or regulating the movement of animals into, within, or out of a defined part of a port ;
- (v) for prescribing and regulating the inspection and examination, and the mode, time, and conditions of slaughter, of animals in a defined part of a port ;
- (vi) for prescribing and regulating the disposal of animals, not being imported animals, and being in a defined part of a port ;
- (vii) for regulating the removal of carcases, fodder, litter, utensils, dung, or other things into, within, or out of a defined part of a port, and the disposal thereof, when likely to introduce or spread disease ;
- (viii) for prescribing and regulating the cleansing and disinfection of a defined part of a port or of parts thereof ;
- (ix) for prescribing and regulating the disinfection or destruction of things being in a defined part of a port or removed thereout ;
- (x) for regulating the movement of persons into, within, or out of a defined part of a port ;
- (xi) for prescribing and regulating the disinfection of the clothes of persons employed or being in a defined part of a port, and the use of precautions against the introduction or spreading by them of disease ;

- (xii) for prescribing and regulating the seizure and detention of any imported animal, carcase, fodder, litter, dung, or other thing whereby disease may be introduced or spread ;
- (xiii) for requiring imported animals, whether as a condition of landing or otherwise, to be marked by tagging or in any other manner ;
- (xiv) for providing for the application to imported animals of any test for disease or of any treatment for disease.

(2) Notwithstanding anything in this Act, a defined part of a port, or any part thereof, shall not be declared to be an infected place, or be made part of an infected place, otherwise than by the Minister.

(3) The landing of imported animals in Great Britain shall be effected in such manner, at such times and subject to such supervision as the Commissioners of Customs and Excise may direct.

34.—(1) There shall be charged in respect of the landing of imported animals in Great Britain such fees as may, in the opinion of the Treasury, be sufficient to meet the expenses of the examination of imported animals by veterinary inspectors, but not exceeding as respects any one animal the sum of six pence : Fees on import.

Provided that the limitation to six pence shall not apply in the case of any imported animal which by virtue of an order of the Minister is required to be detained and tested for disease under the supervision of a veterinary inspector, and in any such case the fees to be charged under this section shall be such as may, in the opinion of the Treasury, be sufficient to meet the expenses of the examination including any such detention and testing as aforesaid.

(2) Any fees charged under this section shall, on demand by the Minister and before the animal, or the carcase of the animal, as the case may be, is moved from the wharf or landing place, be paid to him by the person so moving the animal or carcase.

35. A statutory instrument containing an order of the Minister made in relation to the landing or conveyance of imported animals shall be laid before Parliament after being made. Orders relating to landing or conveyance of imported animals to be laid before Parliament.

PART I
—cont.

Export
quarantine
stations.

Export quarantine stations

36.—(1) For the purpose of preventing the conveyance of disease by animals exported from Great Britain, the Minister may, with the consent of the Treasury, provide facilities for the examination of animals intended for export and provide or approve one or more quarantine stations for the reception, isolation and examination of such animals.

A quarantine station so provided or approved is in this Act referred to as an "export quarantine station."

(2) For the purpose of defraying the costs and expenses incurred by him in the execution of this section or any part thereof, the Minister may charge in respect of the examination of animals intended for export and the issue of certificates in relation thereto, the user of an export quarantine station, and the reception of animals thereat, such fees as may be approved by the Treasury.

Any fees so charged shall be paid to the Minister on demand and, if so required by the Minister, in advance or before the animals are moved from the export quarantine station.

(3) Notwithstanding anything in this Act compensation shall not be payable under this Act in respect of any animal intended for export, which is by reason of its having been diseased or suspected, or of its having been exposed to the infection of any disease, slaughtered in an export quarantine station.

Export of horses

Restriction on
export of
horses.

37.—(1) Subject to the following provisions of this Act it shall not be lawful to ship, or attempt to ship, any horse in any vessel from any port in Great Britain to any port outside the United Kingdom, the Channel Islands and the Isle of Man, unless immediately before shipment the horse has been examined by a veterinary inspector appointed by the Minister for the purpose of conducting examinations under this section, and has been certified in writing by the inspector to comply with the conditions in this section mentioned:

Provided that this subsection shall not apply in such cases as may be prescribed by order of the Minister.

A statutory instrument containing an order under this proviso shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(2) The said conditions are that the horse—

- (a) is capable of being conveyed to the second-mentioned port and disembarked without cruelty; and
- (b) is capable of being worked without suffering.

(3) Where the inspector is satisfied that the horse is of one of the categories set out in the first column of the following table the conditions to be complied with shall include the condition that in the opinion of the inspector the horse is not more than eight years of age and of not less value than the amount specified in respect of it in the second column of that table, or such other amount as may be prescribed by order of the Minister.

TABLE

	£
A heavy draft horse	80
A vanner, mule or jennet	75
An ass	10

(4) Subsection (3) of this section shall not apply in the case of any horse as to which the inspector is satisfied either—

- (a) that it is intended to use the horse as a performing animal; or
- (b) that the horse is registered in the stud book of a society for the encouragement of horse-breeding recognised by the Minister, and is intended to be used for breeding or exhibition purposes; or
- (c) that the horse is a foal at foot accompanying such a horse as is referred to in paragraph (b) of this subsection.

(5) If any horse examined under this section is found by the veterinary inspector to be in such a physical condition that it is cruel to keep it alive, or to be permanently incapable of being worked without suffering, the inspector shall forthwith slaughter it or cause it to be slaughtered with a mechanically operated instrument suitable and sufficient for the purpose, and no compensation shall be made to the owner of the said animal.

(6) There shall be paid to the Minister or such person as he directs, in respect of an examination under this section, and before it takes place, such fees as may be prescribed by order of the Minister.

(7) The inspector's certificate shall be delivered at the time of shipment to the master of the vessel on which the animal is shipped who shall, on demand, produce the certificate to any constable or any inspector or other officer of the Minister or the local authority and allow such constable, inspector or other officer to take a copy of, or extract from, the certificate.

38.—(1) A veterinary inspector may, for the purposes of Marking of identification, mark a horse certified by him under the last fore- horses certified going section in such manner as the Minister may by order for export. prescribe.

PART I
—*cont.*

(2) If any person, with a view to evading the provisions of the last foregoing section, marks a horse with the prescribed mark, or with any mark so nearly resembling it as to be calculated to deceive, he shall be guilty of an offence against this Act.

Master of vessel to cause slaughter of injured horses with approved killing instrument.

39. If any horse shipped from any port in Great Britain to any port outside the United Kingdom, the Channel Islands and the Isle of Man has a limb broken or is otherwise seriously injured while on board so as to be incapable of being disembarked without cruelty, the master of the vessel shall forthwith cause the animal to be slaughtered, and every vessel on which a horse is so shipped shall carry a proper killing instrument, to be approved by the Minister for that purpose.

It shall be the duty of the owner and master of every such vessel to see that the vessel is provided with such an instrument, and the master, if so required by an inspector of the Minister or of the local authority, shall produce the instrument for his inspection.

Exemption of horses certified to be travelling for certain purposes.

40. The three last foregoing sections shall not apply in the case of shipment of any thoroughbred horse certified in writing by a steward or the secretary of the Jockey Club—

- (a) to have arrived in Great Britain not more than one month before the date of shipment for the purpose of being run in a race; or
- (b) to be shipped for the purpose of being run in a race; or
- (c) to be shipped in order to be used for breeding purposes:

Provided that the certificate shall be delivered at the time of shipment to the master of the vessel on which the animal is shipped, who shall, on demand, produce the certificate to any constable or any inspector or other officer of the Minister or the local authority, and allow such person to take a copy of, or extract from, the certificate.

Enforcement of provisions as to shipment of horses and power to make charges.

41.—(1) An inspector of the Minister, or of the local authority, may enter any vessel for the purpose of ascertaining whether the provisions of the four last foregoing sections or of any order under this Act relating to the exportation or shipment of horses are being complied with.

(2) Every local authority shall, if and so far as the Minister by order so directs, execute and enforce the four last foregoing sections.

(3) If any person does anything or omits to do anything in contravention of the provisions of the four last foregoing sections or if the master of a vessel permits a horse to be shipped therein in contravention of those provisions he shall be guilty of an offence against this Act and the provisions of this Act relating to offences and legal proceedings shall apply accordingly as if the expression "animal" therein included horses.

(4) The Minister may charge for any licence, permit or examination required by any order under this Act relating to the exportation or shipment of horses such fee or other charge as may be prescribed by order of the Minister.

PART I
—cont.

(5) In this and the four last foregoing sections the expressions “vessel”, “owner”, “master” and “port” have the same meanings as in the Merchant Shipping Act, 1894.

Prevention of sheep scab

42.—(1) The Minister may make such orders as he thinks fit for prescribing, regulating and securing the periodical treatment of all sheep by effective dipping or by the use of some other remedy for sheep scab.

Prevention of
sheep scab.

(2) An inspector of the Minister and, if so authorised by order of the Minister, an inspector of the local authority, may, subject to the directions of the authority appointing the inspector, and for the purposes of any order or regulation under subsection (1) of this section, enter any premises and examine any sheep thereon.

(3) The owner and the person in charge of any sheep shall comply with all reasonable requirements of the inspector as to the collection and penning of the sheep and afford all other reasonable facilities for the examination of the sheep by the inspector.

43. The local authority may provide, fit up and maintain portable dipping tanks or, with the sanction of the Minister, dipping places, and afford the use thereof, and of all necessary appliances and materials in connection therewith, to the public upon such terms and conditions as the local authority may think fit, and any sums received by a local authority in England or Wales for such use shall be applied by them towards the discharge of their expenses under this Act:

Power of local
authority to
provide
facilities for
sheepdipping.

Provided that no dipping place shall be used for the purposes of this section if such use would injuriously affect the water in any stream, reservoir, aqueduct, well, pond or place constructed or used for the supply of water for drinking or other domestic purposes.

Control of dogs

44. The Minister may make such orders as he thinks fit for all or any of the following purposes—

Power of
Minister to
make orders
as to dogs.

- (a) for prescribing and regulating the muzzling of dogs, and the keeping of dogs under control;
- (b) for prescribing and regulating the wearing by dogs, while in a highway or in a place of public resort,

PART I
—cont.

of a collar with the name and address of the owner inscribed on the collar or on a plate or badge attached thereto ;

- (c) with a view to the prevention of worrying of animals (including horses), for preventing dogs or any class of dogs, from straying during all or any of the hours between sunset and sunrise ;
- (d) for providing that any dog in respect of which an offence is being committed against provisions made under either of the two last foregoing paragraphs, may be seized and treated as a stray dog under the enactments relating to dogs ;
- (e) for prescribing and regulating the seizure, detention, and disposal (including slaughter) of stray dogs and of dogs not muzzled, and of dogs not being kept under control, and the recovery from the owners of dogs of the expenses incurred in respect of their detention.

Diseases of poultry

Application
of Act to
poultry.

45. Subject to the following provisions, this Act shall have effect in relation to poultry as it has effect in relation to animals.

Eradication
of diseases
of poultry.

46.—(1) With a view to promoting the breeding and distribution of stocks of poultry free from disease, the Minister may, with the approval of the Treasury, make arrangements whereby persons carrying on at any premises in Great Britain recognised by him for the purposes of this section the business of breeding and distributing stocks of poultry, may be afforded facilities for having such poultry, whether alive or dead, tested and examined free of charge, with the object of determining whether the birds are free from disease or from what cause they have died.

(2) Any arrangements made under this section may be varied or revoked by subsequent arrangements made with the like approval.

(3) Sections six and seven of this Act shall apply in relation to this section as they apply in relation to sections three and four.

(4) Section four of this Act shall not apply to poultry.

Separation
of diseased
poultry and
notice of
disease.

47.—(1) The Minister may by order prescribe and regulate the separation of diseased poultry from poultry not affected with disease and the notification of disease in, or illness of, poultry.

(2) Subsections (1), (2) and (3) of section eight of this Act shall not have effect in relation to poultry.

48.—(1) The Minister may, if he thinks fit, cause to be slaughtered—

PART I
—cont.

- (a) any diseased or suspected poultry ; or
- (b) any poultry which are or have been in the same field, pen, shed or other place as, or otherwise in contact with, diseased poultry or which appear to the Minister to have been in any way exposed to the infection of disease.

Slaughter of
poultry in
case of
disease.

(2) The Minister shall for poultry, other than diseased poultry, slaughtered under this section pay compensation, which shall be the value of the bird immediately before it was slaughtered.

(3) The Minister may by order prescribe the payment of compensation in accordance with a scale approved by the Treasury for diseased poultry slaughtered under this section, being poultry affected with any disease other than fowl pest in any of its forms, including Newcastle disease and fowl plague.

(4) For the purposes of the execution of this section, the Minister may employ such additional inspectors, valuers and other persons and at such remuneration, and may incur such expenses as, subject to the sanction of the Treasury, the Minister thinks necessary.

(5) Section seventeen of this Act shall not apply to poultry.

49.—(1) The power to make orders conferred on the Minister by section thirty-three of this Act shall include power to make, for the purpose of preventing the introduction or spreading of disease, orders—

Control of
import of
poultry and
eggs.

- (a) for prohibiting the importation or bringing into Great Britain of poultry, or for regulating the importation or bringing into Great Britain of poultry, whether by defining quarantine stations for the reception of poultry and applying any of the provisions of Part II of the First Schedule to this Act or otherwise ; and
- (b) for prohibiting or regulating the importation or bringing into Great Britain of poultry eggs intended for hatching, or the use for hatching of poultry eggs imported or brought into Great Britain.

(2) Sections twenty-four, twenty-five, twenty-seven, thirty and thirty-two of this Act shall not have effect in relation to poultry.

(3) Section thirty-four of this Act shall in its application to poultry have effect with the substitution of references to a sum of one penny as respects any one bird for the references to sixpence as respects any one animal.

PART I
—cont.

Cleansing,
disinfection,
and protection
from un-
necessary
suffering,
of poultry.

50.—(1) The Minister may by order prescribe and regulate the cleansing and disinfection of receptacles or vehicles used for the conveyance or exposure for sale of poultry.

(2) The Minister may make orders for protecting poultry from unnecessary suffering in connection with their exposure for sale and their disposal after sale.

(3) For the purpose of enforcing any order for protecting poultry from unnecessary suffering, an inspector may examine poultry in any circumstances to which the order relates and any receptacle or vehicle used for their conveyance or exposure for sale, and may enter any premises or vessel in which he has reasonable ground for supposing that there are poultry exposed for sale, or in course of conveyance, or packed for conveyance or exposure for sale.

(4) The Conveyance of Live Poultry Order, 1919, made under the Poultry Act, 1911, shall have effect as if it had been made under this section and may be amended, varied, revoked or enforced accordingly.

Power to enter
premises
where poultry
kept.

51. An inspector of the Ministry and, if so authorised by an order of the Minister, an inspector of a local authority may at any time enter any pen, shed, land or other place in which he has reasonable grounds for supposing that poultry are or have been kept, for the purpose of ascertaining whether disease exists or has existed therein.

PART II**REGULATION OF MANUFACTURE, &C., OF VETERINARY
THERAPEUTIC SUBSTANCES**

Substances to
which Part II
applies.

52.—(1) Subject to the provisions of subsection (2) of this section, this Part of this Act shall apply to the therapeutic substances specified in the Third Schedule to this Act and to any other therapeutic substances capable of being used for veterinary purposes which may from time to time be added to that Schedule as being substances the purity or potency of which cannot be adequately tested by chemical means.

(2) In the case of any such substance as aforesaid which is a substance to which the Therapeutic Substances Act, 1925, applies, this Part of this Act shall apply thereto in so far only as the substance is excluded from the operation of that Act, as being intended to be used solely for veterinary purposes, by regulations made under paragraph (g) of subsection (1) of section five of that Act.

53.—(1) The Minister may make orders for the following purposes:—

PART II
—cont.

- (a) for adding to the Third Schedule to this Act any therapeutic substance capable of being used for veterinary purposes, the purity or potency of which cannot be adequately tested by chemical means;
- (b) for prohibiting, except under a licence for the purpose issued by the Minister and in accordance with any conditions subject to which the licence is issued, the manufacture for sale or the importation into Great Britain of any such substance to which this Part of this Act applies as may be specified in the order;
- (c) for prescribing the standard of strength, quality and purity of any substance in respect of which an order made for the purpose last aforesaid is in force;
- (d) for prescribing the tests to be used for determining whether the standard prescribed as aforesaid has been attained;
- (e) for prescribing units of standardisation;
- (f) for prescribing the form of licences and of applications therefor, and of notices to be given in connection therewith;
- (g) for prescribing the conditions subject to which licences may be issued, including, in the case of a licence to manufacture, conditions that the manufacture shall be carried on only upon the premises specified in the licence and that the licensee shall allow any inspector authorised by the Minister in that behalf to enter any premises where the manufacture is carried on, and to inspect the premises and plant and the process of manufacture and the means employed for standardising and testing the manufactured substance and to take samples thereof;
- (h) for prescribing any other matter which under this Part of this Act is to be prescribed.

(2) The Minister may make orders as respects any such substance to which this Part of this Act applies as may be specified therein—

- (a) requiring that, if advertised or sold as a proprietary medicine or contained in such medicine, such accepted scientific name or name descriptive of the true nature or origin of the substance as may be prescribed shall appear on the label;
- (b) requiring that the date of the manufacture shall be stated in the prescribed manner on all vessels or other packages in which the substance is sold or offered for

Power to make regulations as to substances to which Part II applies.

PART II
—cont.

sale, and prohibiting the sale of the substance after the expiration of the prescribed period from the date of manufacture ;

- (c) prohibiting the sale or the offering for sale or the importation of the substance otherwise than in a vessel or other container of such character as may be prescribed, and requiring that the prescribed label or other description shall be affixed to such vessel or container.

**Licences to
manufacture.**

54.—(1) The following provisions shall have effect with respect to licences to manufacture for sale a substance the manufacture of which otherwise than under a licence is prohibited by an order, that is to say—

- (a) the licence shall be issued subject to such conditions as may be prescribed, may extend to all such substances or to such one or more of them as may be specified in the licence, shall continue in force for such period as may be prescribed, but may from time to time be renewed for a like period ;
- (b) an applicant for a licence or the renewal of a licence must satisfy the Minister that the conditions under which the substance is to be manufactured by him and the premises in which it is to be manufactured are such as to comply with any order in force for the purposes of the last foregoing section, and an applicant who so satisfies the Minister shall be entitled to the grant or renewal of the licence ;
- (c) the Minister may revoke a licence or suspend it for such period as he thinks fit, if in his opinion the licensee has failed to comply with the conditions subject to which the licence was issued or with any such order as aforesaid as to the prescribed standards of strength, quality and purity, and such revocation or suspension may apply to all the substances to which the licence extends or to some one or more of them :

Provided that a person who is aggrieved by the revocation or suspension of his licence may, subject to rules of court, appeal to the court, whose decision shall be final.

(2) Nothing in any order prohibiting or regulating the manufacture for sale of any substance to which this Part of this Act applies shall apply to the preparation by a registered veterinary surgeon or practitioner for the treatment of any animal or poultry under his care, or for and at the request of another such surgeon or practitioner, of any such substance, if it is specially prepared with reference to the condition and for the treatment of an individual animal or bird.

(3) In this section,

"the court" means, as respects England, the High Court and, as respects Scotland, the Court of Session, and

"registered" means, in relation to a veterinary surgeon, registered in pursuance of the Veterinary Surgeons Act, 1881, either in the register of veterinary surgeons or in the register of existing practitioners and, in relation to a veterinary practitioner, registered in pursuance of the Veterinary Surgeons Act, 1948, in the Supplementary Veterinary Register.

PART II
—cont.

55. The issue of a licence to import a substance the importation of which otherwise than under a licence is prohibited by an order shall be subject to such conditions, including conditions as to the strength, quality and purity of the substance and as to the suspension or revocation of the licence, as may be prescribed. Licences to import.

56. If any person—

- (a) contravenes or fails to comply with any condition subject to which any such licence as aforesaid is issued ;
- (b) sells or offers for sale or has in his possession for sale any substance to which this Part of this Act applies knowing it to have been manufactured or imported in contravention of an order in force for any of the purposes of section fifty-three of this Act ;
- (c) contravenes or fails to comply with the provisions of any such order as aforesaid ;

Offences under
Part II.

he shall be liable on summary conviction to a fine not exceeding fifty pounds or, in the case of a second or subsequent conviction, to such a fine or to imprisonment for a time not exceeding two months, and in either case to forfeit any goods in connection with which the offence was committed, and without prejudice, if the offender is the holder of a licence, to the power of the Minister to revoke or suspend the licence.

PART III

SUPPLEMENTAL

General provisions as to Minister

57. The powers and duties conferred and imposed by this Act on the Minister shall be executed and discharged by the Minister in manner provided by the Ministry of Agriculture and Fisheries Acts, 1889 to 1919, and this Act. Functions of
Minister.

58. The Minister shall make and lay before both Houses of Parliament, not later than the thirty-first day of March in each year, a return stating the proceedings and expenditure under Yearly return
by Minister
to Parliament.

PART III
—cont.

this Act of the Minister, and, as far as reasonably may be, of all local authorities, in the year ending the thirty-first day of December then last; and showing the number of imported animals landed and found diseased in that year, specifying separately the different kinds of disease, and the ports of exportation and landing, and the mode of disposal of the animals; and containing such other information respecting the operation of this Act as the Minister thinks fit.

General provisions as to local authorities

Local
authorities
for the
purposes of
this Act.

59.—(1) In this Act the expression “local authority” has the meaning assigned to it by subsections (2) and (3) of this section, but subject to the provisions of subsection (4) of this section.

(2) In the application of this Act to England and Wales the expression “local authority” means—

(a) as respects a borough not being—

(i) a borough to which section thirty-nine of the Local Government Act, 1888, applies, that is to say, a borough which contained according to the census of eighteen hundred and eighty-one a population of less than ten thousand; or

(ii) a metropolitan borough,

the borough council;

(b) as respects the residue of each administrative county, the county council:

Provided that the mayor and commonalty and citizens of the city of London, acting by the mayor, aldermen, and commons of that city in common council assembled, shall be the local authority for the city of London, and shall be the local authority in and for the county of London for the purpose of the provisions of this Act relating to imported animals.

(3) In the application of this Act to Scotland the expression “local authority” means—

(a) as respects a large burgh within the meaning of the Local Government (Scotland) Act, 1947, the town council; and

(b) as respects a county inclusive of any burgh other than as aforesaid, the county council.

(4) Where the district or part of a district of a local authority is or comprises, or is comprised in, a port or part of a port, the Minister may, if he thinks fit, in relation to that port or part of a port by order make any body, other than the local authority under the foregoing provisions of this section, the local authority for the purposes of the provisions of this Act relating to imported animals.

(5) A local authority shall execute and enforce this Act and every order of the Minister so far as the same are to be executed and enforced by local authorities.

PART III
—cont.
Committees
of local
authorities.

60.—(1) Subject to the provisions of this section, the Fourth Schedule to this Act shall have effect with respect to committees of local authorities, but nothing therein contained shall prejudice or affect the power of a county council to delegate their powers to any committee or body under section twenty-eight of the Local Government Act, 1888, or any other enactment relating to local government in any part of Great Britain.

(2) The Minister, in any order made by him under this Act for authorising a local authority to make regulations, may direct that the power to make such regulations for any purposes specified in that behalf in the order shall be exercised only by the local authority or their executive committee, and shall not be deputed to any other committee nor to a sub-committee.

(3) Nothing in this section shall apply to the London County Council.

61.—(1) A local authority may provide, erect, and fit up wharves, stations, lairs, sheds, and other places for the landing, reception, keeping, sale, slaughter, or disposal of imported or other animals, carcases, fodder, litter, dung, and other things. Provision of wharves, etc.

(2) There shall be incorporated with this Act the Markets and Fairs Clauses Act, 1847, except sections six to nine and fifty-one to sixty thereof.

(3) A wharf or other place provided by a local authority under this section shall be a market within that Act; and this Act shall be the special Act; and the prescribed limits shall be the limits of lands acquired or appropriated for purposes of this section; and byelaws shall be approved by the Minister which approval shall be sufficient without any other approval or allowance, notice of application for approval being given, and proposed byelaws being published before application, as required by the Markets and Fairs Clauses Act, 1847.

(4) A local authority may charge for the use of a wharf or other place provided by them under this section such sums as may be imposed by byelaws, and the same shall be deemed tolls authorised by the special Act.

(5) All sums so received by a local authority in England or Wales shall be carried to a separate account, and shall be applied in payment of interest on money borrowed by them under this Act, and in repayment of the principal thereof, and, subject thereto, towards discharge of their expenses under this Act.

(6) The local authority shall make such periodical returns to the Minister of their expenditure and receipts in respect of the wharf or other place as the Minister requires.

(7) The Minister, if satisfied on inquiry that the tolls taken by the local authority for the wharf or other place may properly be reduced, regard being had to the expenditure and receipts of the local authority in respect thereof, and to any money

PART III
—cont.

secured on the tolls, and to the other circumstances of the case, may require the local authority to submit to the Minister, for his approval, a new schedule of tolls, and on failure of the local authority to do so to the satisfaction of the Minister, may, by order, prescribe such tolls as the Minister thinks fit, in lieu of those before approved by the Minister.

**Power to
acquire land.**

62.—(1) A local authority may purchase by agreement, or, if so authorised by the Minister, compulsorily, or may by agreement take on lease or at a rent, land for wharves or other places, or for use for burial of carcases, in cases where there is not any ground suitable in that behalf in the possession or occupation of the owner of the animal, or any common or unenclosed land suitable and approved by the Minister in that behalf, or for any other purposes of this Act.

(2) The powers conferred by this section may be exercised by a local authority in England or Wales with respect to land within or without their district.

(3) In Scotland a local authority may be authorised by the Secretary of State to purchase land compulsorily for any purpose mentioned in subsection (1) of this section.

(4) Without prejudice to the effect of subsection (1) of section thirty-eight of the Interpretation Act, 1889, as regards references in an Act to an enactment repealed and re-enacted, references in the Acquisition of Land (Authorisation Procedure) Act, 1946, and the Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947, to enactments in force immediately before the respective commencements of those Acts shall include references to this section.

**Default
of local
authorities.**

63.—(1) Where a local authority fail to execute or enforce any of the provisions of this Act, or of an order of the Minister, the Minister may by order empower a person therein named to execute and enforce those provisions, or to procure the execution and enforcement thereof.

(2) The expenses incurred under any such order or in respect of any such default by or on behalf of the Minister shall be expenses of the local authority, and the treasurer or other proper officer of the local authority shall pay the amount of such expenses to the Minister on demand, and in default of payment a person appointed by the Minister to sue in that behalf may recover the amount of such expenses from the local authority.

(3) For the purposes of this section an order of the Minister shall be conclusive in respect of any default, amount of expenses, or other matter therein stated or appearing.

(4) The provisions of this section shall be without prejudice to the right or power of the Minister, or any other authority or any

person, to take any other proceedings for requiring a local authority to execute or enforce any of the provisions of this Act or of an order of the Minister.

PART III
—cont.

64.—(1) Every local authority shall appoint so many inspectors and other officers as the local authority think necessary for the execution and enforcement of this Act, and shall assign to those inspectors and officers such duties, and salaries or allowances, and may delegate to any of them such authorities and discretion, as to the local authority seem fit, and may at any time revoke any appointment so made.

Inspectors and other officers of local authorities.

(2) The Minister on being satisfied on inquiry that an inspector of a local authority is incompetent, or has been guilty of misconduct or neglect, may, if he thinks fit, direct his removal, and thereupon he shall cease to be an inspector.

65. Every local authority and their inspectors and officers shall send and give to the Minister such notices, reports, returns, and information as the Minister requires.

Reports to Minister.

66.—(1) An order or regulation of a local authority may be proved—

Orders and regulations of local authorities.

(a) by the production of a newspaper purporting to contain the order or regulation as an advertisement; or

(b) by the production of a copy of the order or regulation purporting to be certified by the clerk of the local authority as a true copy.

(2) An order or regulation so proved shall be taken to have been duly made, unless and until the contrary is proved.

(3) An order or regulation of a local authority authorised by this Act or by an order of the Minister shall alone be deemed for the purposes of this Act an order or regulation of a local authority.

67. The provisions of this Act conferring powers on, or otherwise relating to, a local authority, or their inspectors or officers, shall, unless otherwise expressed, be read as having reference to the district of the local authority; and powers thereby conferred shall, unless it is otherwise expressed, be exercisable and shall operate within and in relation to that district only.

Powers of local authorities to be for their districts.

68.—(1) Wherever the whole or any part of the district of any local authority is wholly surrounded by or has a common boundary with the district of any other local authority, those two local authorities may by agreement in writing between themselves make and vary and rescind provisions for the exercise by one of them (in this section referred to as “the administering authority”) of powers under this Act or any order of the Minister within the whole or any part of the district of the

Transfer of powers from one local authority to another, or formation of a united district.

PART III
—cont.

other (in this section referred to as “ the surrendering authority ”) and for ascertaining the proportion of the expenses of the administering authority to be paid by the surrendering authority, such proportion to be fixed with reference to the rateable value of the part of the district of the surrendering authority surrendered to the administering authority as compared with the rateable value of the original area of the district of the administering authority.

(2) The district or part of a district subjected, in pursuance of an agreement under this section, to the powers of the administering authority, shall, for the purpose of the exercise of such powers, be deemed to be part of the district of the administering authority, and be dealt with accordingly.

(3) A local authority may by agreement in writing concur with any other local authority or authorities in appointing out of their respective bodies a joint committee consisting of such number of members with such tenure of office as they may determine, and in assigning to the joint committee a district consisting of the whole or such parts of the districts of the constituent authorities as the authorities may determine, and in delegating to the joint committee within their district the whole or any part of the powers of a local authority.

The joint committee shall, in respect of any powers so assigned to them, exercise the same powers and be subject to the same obligations, and this Act and any order of the Minister shall, in respect of the district so assigned, take effect, as if such district were the district of a local authority and the joint committee were a local authority within the meaning of this Act.

(4) All expenses incurred by the joint committee shall be apportioned among the component areas belonging to the different constituent authorities in proportion to the rateable values of such areas, as compared with each other.

(5) An agreement made under this section shall not be valid unless it has been approved by the Minister.

(6) The expression “ powers ” in this section shall not include the power of making or levying a rate, but shall include all other powers, duties, and obligations exercisable by or imposed on a local authority or its officers under or by this Act, or any order of the Minister.

Finances of local authorities

**Expenses of
local
authorities.**

69. The expenses under this Act of a county council in England or Wales shall be defrayed as expenses for special county purposes charged on those county districts the councils of which are not local authorities for the purposes of this Act:

Provided that the payment of the expenses under this Act of the local authority for the County of London shall be a general county purpose.

PART III
—cont.

70. A local authority may borrow for the purposes of this Act: Borrowing powers of local authorities.

Provided that in Scotland the power conferred by this section shall only be exercisable where the expenditure of the local authority under this Act requiring to be met out of rates in any financial year exceeds or would exceed the produce of a rate of sixpence in the pound on the rateable valuation of the authority's area.

Police

71.—(1) The police force of each police area shall execute and enforce this Act and every order of the Minister. Duties and authorities of constables.

(2) Where a person is seen or found committing, or is reasonably suspected of being engaged in committing, an offence against this Act, a constable may, without warrant, stop and detain him; and, if his name and address are not known to the constable, and such person fails to give them to the satisfaction of the constable, the constable may, without warrant, apprehend him; and the constable may, whether so stopping or detaining or apprehending the person or not, stop, detain, and examine any animal, vehicle, boat, or thing to which the offence or suspected offence relates, and require the same to be forthwith taken back to or into any place or district wherefrom or whereout it was unlawfully removed, and execute and enforce that requisition.

(3) If any person obstructs or impedes or assists to obstruct or impede a constable or other officer in the execution of this Act or of an order of the Minister or of a regulation of a local authority, the constable or officer may without warrant apprehend the offender.

(4) A person apprehended under this section shall be taken with all practicable speed before a justice, and shall not be detained without a warrant longer than is necessary for that purpose; and all enactments relating to the release of persons on recognizances taken by an officer of police or a constable shall apply in the case of a person apprehended under this section.

(5) The foregoing provisions of this section respecting a constable extend and apply to any person called by a constable to his assistance.

(6) A constable shall forthwith make a report in writing to his superior officer of every case in which he stops any person, animal, vehicle, boat, or thing under this section, and of his proceedings consequent thereon.

PART III
—cont.

(7) Nothing in this section shall take away or abridge any power or authority that a constable would have had if this section had not been enacted.

*General administrative provisions***Agricultural
Marketing
Boards to give
information
to Minister.**

72.—(1) It shall be the duty of every board administering a scheme under the Agricultural Marketing Acts, 1931 to 1949, to give at any time to the Minister such information as he may reasonably require for the purposes of his functions under this Act.

(2) Nothing in section seventeen of the Agricultural Marketing Act, 1931, as amended by subsection (2) of section twenty-four of the Agricultural Marketing Act, 1933, shall apply to any disclosure of information made by a board in compliance with a requisition of the Minister under this section.

**General
powers of
inspectors.**

73.—(1) An inspector shall have, for the purposes of this Act, all the powers which a constable has, under this Act or otherwise, in the place where the inspector is acting.

(2) An inspector may at any time enter any land or shed to which this Act applies, or other building or place wherein he has reasonable grounds for supposing—

- (a) that disease exists or has within fifty-six days existed ; or
- (b) that the carcase of a diseased or suspected animal is or has been kept, or has been buried, destroyed, or otherwise disposed of ; or
- (c) that there is to be found any pen, place, vehicle, or thing in respect whereof any person has on any occasion failed to comply with the provisions of this Act, or of an order of the Minister, or of a regulation of a local authority ; or
- (d) that this Act or an order of the Minister or a regulation of a local authority has not been or is not being complied with.

(3) An inspector may at any time enter any pen, vehicle, vessel, or boat in which or in respect whereof he has reasonable grounds for supposing that this Act or an order of the Minister or a regulation of a local authority has not been or is not being complied with.

(4) An inspector entering, as herein-before by this section authorised, shall, if required by the owner, or occupier, or person in charge of the land, building, place, pen, vehicle, vessel, or boat, state in writing his reasons for entering.

(5) A certificate of a veterinary inspector to the effect that an animal is or was affected with a disease specified in the certificate shall, for the purposes of this Act, be conclusive evidence in all courts of justice of the matter certified.

(6) An inspector of the Minister shall have all the powers of an inspector throughout England and Wales or that part thereof for which he is appointed, and in addition to the powers hereinbefore conferred upon inspectors, an inspector of the Minister may at any time, for the purpose of ascertaining whether pleuropneumonia, foot-and-mouth disease, or swine-fever exists, or has within fifty-six days existed, in any shed, land, or other place, enter such shed, land, or place.

74.—(1) Where an inspector of the Minister is satisfied that this Act or an order of the Minister or a regulation of a local authority has not been or is not being complied with on board a vessel in a port, then, on the representation in writing to that effect of the inspector, stating particulars of non-compliance, the vessel may be detained until the Minister otherwise directs. Power to detain vessels.

(2) The officer detaining the vessel shall forthwith deliver to the master or person in charge of the vessel a copy of the representation.

(3) Section six hundred and ninety-two of the Merchant Shipping Act, 1894, shall apply in the case of such detention as if it were authorised or ordered under that Act.

75.—(1) Where a carcase washed ashore is buried or destroyed under the direction of a receiver of wreck with authority from the Minister of Transport, the expenses thereof shall be expenses of the local authority, and shall be paid by the local authority to the receiver on demand, and in default of payment shall be recoverable with costs by the receiver from the local authority. Expenses of burial of carcases washed ashore.

(2) Where a local authority has incurred any expenses under this section on account of the burial or destruction of the carcase of any animal which, or the carcase of which, was thrown or washed from any vessel, the owner of the vessel shall be liable to repay such expenses to the local authority; and the local authority may recover such expenses with costs in the same manner as salvage is recoverable.

76. No stamp duty shall be payable on, and, save as otherwise expressly provided, no fee or other charge shall be demanded or made for, any appointment, certificate, declaration, licence, or thing under this Act, or an order of the Minister, or a regulation of a local authority, or for any inspection or other act precedent to the granting, making, or doing of a certificate, declaration, licence, or other thing. Exemption from stamp duty and fees.

PART III
—cont.

Evidence and
form and
service of
instruments.

77.—(1) In any proceeding under this Act, no proof shall be required of the appointment or handwriting of an inspector or other officer of the Minister or of the clerk or an inspector or other officer of a local authority.

(2) Every notice under this Act or under any order or regulation made under this Act must be in writing.

(3) The Minister may make such orders as he thinks fit for prescribing and regulating the form and mode of service or delivery of notices and other instruments.

(4) Any notice or other instrument under this Act or under an order of the Minister or a regulation of a local authority may be served on the person to be affected thereby, either by the delivery thereof to him personally, or by the leaving thereof for him at his last known place of abode or business, or by the sending thereof through the post in a letter addressed to him there.

(5) A notice or other instrument to be served on the occupier of any building, land, or place may, except when sent by post, be addressed to him by the designation of the occupier of that building, land, or place, without naming or further describing him; and where it is to be served on the several occupiers of several buildings, lands, or places, may, except when sent by post, be addressed to them collectively by the designation of the occupiers of those several buildings, lands, or places, without further naming or describing them, but separate copies thereof being served on them severally.

Offences and legal proceedings

Offences
against
this Act.

78.—(1) If any person, without lawful authority or excuse, proof whereof shall lie on him, does any of the following things, he shall be guilty of an offence against this Act:—

- (i) if he does anything in contravention of this Act, or of an order of the Minister, or of a regulation of a local authority; or
- (ii) if, where required by this Act or by an order of the Minister to keep an animal separate as far as practicable, or to give notice of disease with all practicable speed, he fails to do so; or
- (iii) if he fails to give, produce, observe, or do any notice, licence, rule, or thing which by this Act, or by an order of the Minister, or by a regulation of a local authority, he is required to give, produce, observe, or do; or
- (iv) if he does anything which by this Act or an order of the Minister is made or declared to be not lawful; or

- (v) if he does or omits anything, the doing or omission whereof is declared by this Act or by an order of the Minister to be an offence by him against this Act ; or
 - (vi) if he refuses to an inspector or other officer, acting in execution of this Act, or of an order of the Minister, or of a regulation of a local authority, admission to any land, building, place, vessel, pen, vehicle, or boat which the inspector or officer is entitled to enter or examine, or obstructs or impedes him in so entering or examining, or otherwise in any respect obstructs or impedes an inspector or constable or other officer in the execution of his duty, or assists in any such obstructing or impeding ; or
 - (vii) if he throws or places, or causes or suffers to be thrown or placed, into or in any river, stream, canal, navigation, or other water, or into or in the sea within three miles of the shore, the carcase of an animal which has died of disease, or been slaughtered as diseased or suspected.
- (2) If any person does any of the following things, he shall be guilty of an offence against this Act :—
- (i) if, with intent to unlawfully evade this Act, or an order of the Minister, or a regulation of a local authority, he does anything for which a licence is requisite under this Act, or an order of the Minister, or a regulation of a local authority, without having obtained a licence ; or
 - (ii) if, where a licence is requisite, having obtained a licence, he, with the like intent, does the thing licensed after the licence has expired ; or
 - (iii) if he uses or offers or attempts to use as such a licence an instrument not being a complete licence, or an instrument untruly purporting or appearing to be a licence, unless he shows to the satisfaction of the court that he did not know of that incompleteness or untruth, and that he could not with reasonable diligence have obtained knowledge thereof ; or
 - (iv) if, with intent to unlawfully evade this Act, or an order of the Minister, or a regulation of a local authority, he alters, or falsely makes, or ante-dates, or counterfeits, or offers or utters, knowing the same to be altered, or falsely made, or ante-dated, or counterfeited, a licence, declaration, certificate, or instrument made or issued, or purporting to be made or issued, under or for any purpose of this Act, or of an order of the Minister, or of a regulation of a local authority ; or

PART III
—cont.

- (v) if, for the purpose of obtaining a licence, certificate, or instrument, he makes a declaration or statement false in any material particular, unless he shows to the satisfaction of the court that he did not know of that falsity, and that he could not with reasonable diligence have obtained knowledge thereof; or
- (vi) if he obtains or endeavours to obtain such a licence, certificate, or instrument by means of a false pretence, unless he shows to the satisfaction of the court that he did not know of that falsity, and that he could not with reasonable diligence have obtained knowledge thereof; or
- (vii) if he grants or issues such a licence, certificate, or instrument, being false in any date or other material particular, unless he shows to the satisfaction of the court that he did not know of that falsity, and that he could not with reasonable diligence have obtained knowledge thereof, or if he grants or issues such a licence, certificate, or instrument, having, and knowing that he has, no lawful authority to grant or issue the same; or
- (viii) if, with intent to unlawfully evade or defeat this Act, or an order of the Minister, or a regulation of a local authority, he grants or issues an instrument being in form a licence, certificate, or instrument made or issued under this Act or an order of the Minister or a regulation of a local authority, for permitting or regulating the movement of a particular animal, or the doing of any other particular thing, but being issued in blank, that is to say, not being before the issue thereof so filled up as to specify any particular animal or thing; or
- (ix) if he uses or offers or attempts to use for any purpose of this Act, or of an order of the Minister, or of a regulation of a local authority, an instrument so issued in blank, unless he shows to the satisfaction of the court that he did not know of it having been so issued in blank, and that he could not with reasonable diligence have obtained knowledge thereof; or
- (x) if he by means of any fraud or false pretence obtains, or attempts to obtain, compensation from the Minister in respect of an animal slaughtered, or aids or abets any person in any such fraud or false pretence; or
- (xi) if, without lawful authority or excuse, proof whereof shall lie on him, he digs up, or causes to be dug up, a carcase buried under the direction of the Minister or of a local authority or of a receiver of wreck; or

(xii) if, where the Minister has by order prohibited, absolutely or conditionally, the use for the carrying of animals, or for any purpose connected therewith, of a vessel, vehicle, or pen, or other place, he, without lawful authority or excuse, proof whereof shall lie on him, does anything so prohibited.

PART III
—cont.

79.—(1) If any person is guilty of an offence against this Act he shall for every such offence be liable—

Punishment for offences against this Act.

- (a) to a fine not exceeding fifty pounds; or
- (b) if the offence is committed with respect to more than ten animals, to a fine not exceeding five pounds for each animal; or
- (c) where the offence is committed in relation to carcases, fodder, litter, dung or other thing (exclusive of animals), to a fine not exceeding ten pounds in respect of every half ton in weight thereof after one half ton in addition to the first fine not exceeding fifty pounds.

(2) Where a person has been convicted of an offence under any paragraph of subsection (1) of the last foregoing section, he shall be liable, on a further conviction within a period of twelve months for a second or subsequent offence against the same paragraph, in the discretion of the court, to be imprisoned for any term not exceeding one month in lieu of the fine to which he is liable under the foregoing subsection.

(3) A person guilty of an offence under subsection (2) of the last foregoing section shall be liable on conviction, in the discretion of the court, to be imprisoned for any term not exceeding two months in lieu of the fine to which he is liable under subsection (1) of this section.

(4) Nothing in this section shall apply in relation to an offence punishable under section seven of this Act.

80. Any offence against this Act may be prosecuted, and any fine in respect thereof may be recovered, and any money by this Act or an order of the Minister made recoverable summarily may be recovered, and any summary order under this Act or an order of the Minister may be made in manner provided by the Summary Jurisdiction Acts; but nothing in this section shall apply to proceedings under the Customs Acts.

Proceedings in court of summary jurisdiction.

81.—(1) If any person thinks himself aggrieved by the dismissal of a complaint by, or by any determination or adjudication of, a court of summary jurisdiction in England or Wales under this Act, he may appeal therefrom to a court of quarter sessions.

(2) Nothing in this section shall apply in relation to an offence punishable under section seven of this Act.

PART III*—cont.*

Proceedings
under Customs
Acts for
unlawful
landing or
shipping.

82.—(1) If any person lands or ships or attempts to land or ship an animal or thing in contravention of this Act or of an order of the Minister, he shall be liable, under and according to the Customs Acts, to the penalties imposed on persons importing or exporting or attempting to import or export goods the importation or exportation whereof is prohibited by or under the Customs Acts, without prejudice to any proceeding against him under this Act for an offence against this Act.

(2) The animal or thing in respect whereof the offence is committed shall be forfeited under and according to the Customs Acts in like manner as goods the importation whereof is prohibited by or under the Customs Acts.

General
provision as
to procedure.

83.—(1) Where the owner or person in charge of an animal is charged with an offence against this Act relative to disease or to any illness of the animal, he shall be presumed to have known of the existence of the disease or illness, unless and until he shows to the satisfaction of the court that he had not knowledge thereof, and could not with reasonable diligence have obtained that knowledge.

(2) Where a person is charged with an offence against this Act in not having duly cleansed or disinfected any place, vessel, vehicle, or thing belonging to him or under his charge, and a presumption against him on the part of the prosecution is raised, it shall lie on him to prove the due cleansing and disinfection thereof.

(3) Every offence against this Act shall be deemed to have been committed, and every cause of complaint or matter for summary proceeding under this Act or an order of the Minister or regulation of a local authority shall be deemed to have arisen, either in any place where the same actually was committed or arose, or in any place where the person charged or complained of or proceeded against happens to be at the time of the institution or commencement of the charge, complaint, or proceeding.

(4) Notwithstanding anything in any Act relating to the metropolitan police or to municipal corporations or in any other Act, such part not exceeding one half of every fine or forfeiture recovered under this Act (except in proceedings under the Customs Acts) as the court before which it is recovered thinks fit, shall be paid to the person who proceeds for the same, and the residue thereof shall be applied as if this section had not been enacted:

Provided that this subsection shall cease to have effect in England and Wales upon the coming into force of section twenty-seven of the Justices of the Peace Act, 1949.

(5) Nothing in this section shall apply in relation to an offence punishable under section seven of this Act.

Interpretation and provisions as to orders of the Minister

PART III

—cont.

Interpretation.

84.—(1) In this Act, unless the context otherwise requires, the expression “animals” means cattle, sheep and goats, and all other ruminating animals and swine:

Provided that—

- (a) the Minister may, for all or any of the purposes of this Act, by order extend this definition so that it shall, for those purposes or any of them, comprise any other kind of four-footed beasts;
- (b) in the application of this Act to poultry this definition shall not have effect.

(2) In this Act, unless the context otherwise requires, the expression “poultry” means birds of the following species, that is to say,—

- (a) domestic fowls, turkeys, geese, ducks, guinea-fowls and pigeons; and
- (b) pheasants and partridges:

Provided that the Minister may, for all or any of the purposes of this Act, in so far as it applies to poultry, by order extend this definition so that it shall, for those purposes or any of them, comprise any other species of bird or restrict this definition so that it shall, for those purposes or any of them, exclude any of the species of bird mentioned in paragraph (b) of this subsection.

(3) In this Act, unless the context otherwise requires, the expression “disease”—

- (a) except in so far as this Act applies to poultry, means cattle plague, pleuro-pneumonia, foot-and-mouth disease, sheep-pox, sheep scab or swine-fever, so, however, that the Minister may, for all or any of the purposes of this Act, by order extend this definition so that it shall, for those purposes or any of them, comprise any other disease of animals;
- (b) in so far as this Act applies to poultry, means—
 - (i) fowl pest in any of its forms, including Newcastle disease and fowl plague, and
 - (ii) pneumo-encephalitis, fowl cholera, contagious bronchitis, infectious laryngo-tracheitis, bacillary white diarrhoea, fowl typhoid, fowl pox and fowl paralysis,

so, however, that the Minister may, for all or any of the purposes of this Act, by order extend this definition so that it shall, for those purposes or any of them, comprise any other disease of birds or restrict this definition so that it shall, for those purposes or any of them, exclude any of the diseases mentioned in subparagraph (ii) of paragraph (b) of this subsection.

PART III
—*cont.*

(4) In this Act, unless the context otherwise requires—

- “Canadian” in relation to any animal means born and reared in Canada ;
- “carcase” means the carcase of an animal and includes part of a carcase, and the meat, bones, hide, skin, hooves, offal or other part of an animal, separately or otherwise, or any portion thereof ;
- “cattle” means bulls, cows, oxen, heifers, and calves ;
- “cattle plague” means rinderpest or the disease commonly called cattle plague ;
- “the Customs Acts” means the Customs Consolidation Act, 1876, and any enactment amending or substituted for that Act ;
- “diseased” means affected with disease ;
- “district”, when used with reference to a local authority, means the area for which the local authority exercises powers under this Act ;
- “export quarantine station” has the meaning assigned to it by subsection (1) of section thirty-six of this Act ;
- “fodder” means hay or other substance commonly used for food of animals ;
- “horse” includes ass and mule ;
- “imported” means brought to Great Britain from a country out of Great Britain ;
- “inspector” means a person appointed to be an inspector for the purposes of this Act by the Minister or by a local authority, and, when used in relation to an officer of the Ministry includes a veterinary inspector ;
- “justice” means justice of the peace ;
- “litter” means straw or other substance commonly used for bedding or otherwise for or about animals ;
- “local authority” has the meaning assigned to it by section fifty-nine of this Act ;
- “Minister” means the Minister of Agriculture and Fisheries and “Ministry” shall be construed accordingly ;
- “order of the Minister” means an order of the Minister under this Act ;
- “pleuro-pneumonia” means contagious pleuro-pneumonia of cattle ;
- “police area” and “police force”, with respect to the City of London, mean the said city and the police thereof, and with respect to any other place have the same meaning as in the Police Act, 1890 ;
- “suspected” means suspected of being diseased ;
- “swine-fever” means the disease known as typhoid fever of swine, soldier purples, red disease, hog cholera or swine-plague ;
- “veterinary inspector” means a veterinary inspector appointed by the Minister.

PART III
—cont.

(5) In the computation of time for the purposes of this Act, a period reckoned by days from the happening of an event or the doing of an act or thing shall be deemed to be exclusive of the day on which the event happened or the act or thing is done.

85.—(1) An order of the Minister may be altered or revoked by a subsequent order made in the like manner and subject to the like conditions. Orders, etc.
of the Minister.

(2) Every order of the Minister shall have effect as if it had been enacted by this Act.

(3) The Minister shall publish in the London Gazette a notice of any order made by him under this Act stating that the order has been made and the place where copies of the order may be obtained.

(4) Every local authority shall at their own expense publish every order of the Minister, and every licence, or other instrument sent to them by the Minister for publication, in such manner as the Minister directs, and, subject to and in the absence of any direction, by advertisement in a newspaper circulating in the district of the local authority.

(5) The validity or effect of an order of the Minister, licence, or other instrument issued by the Minister shall not be affected by want of or defect or irregularity in any publication thereof.

(6) The foregoing provisions of this section shall not apply to any order made under section three of this Act and subsections (2) to (5) of this section shall not apply to an order made under section seventeen of this Act.

(7) The power of making orders conferred on the Minister by any provision of this Act, other than section twenty-seven, subsection (2) of section forty-two or subsection (1) of section sixty-three, shall be exercisable by statutory instrument.

Scotland and Northern Ireland

86.—(1) The provisions of this section shall have effect for the purpose of the application of this Act to Scotland. General
application
to Scotland.

(2) The expressions "police area" and "police force" have the same meanings as in the Police (Scotland) Act, 1890, and the expressions "gross annual valuation" and "rateable valuation" have the same meanings as in the Local Government (Scotland) Act, 1947.

(3) An inspector or veterinary inspector of the Minister shall have all the powers of an inspector or veterinary inspector, as the case may be, throughout Scotland or that part thereof for which he is appointed.

(4) In the event of any person refusing or delaying to comply with the order of a local authority, the local authority may give information thereof to the procurator-fiscal of the county or

PART III
—cont.

burgh, who may apply to the sheriff for a warrant to carry such order into effect, and such warrant may be executed by the officers of court in common form.

(5) Notwithstanding anything in this or any other Act, the part of every fine or forfeiture recovered under this Act which is not in this Act directed to be paid to the person who sues or proceeds for the same, shall be paid as follows—

- (a) to the King's and Lord Treasurer's Remembrancer, on behalf of His Majesty, when the court is the sheriff court;
- (b) to the treasurer of the county where the court is a justice of the peace court;
- (c) to the chamberlain of the burgh where the court is a burgh or police court.

Nothing in this subsection shall apply in relation to an offence punishable under section seven of this Act.

(6) Section sixty-eight of this Act shall have effect as if—

- (a) for the references in subsection (1) to rateable value there were substituted references to gross annual valuation; and
- (b) there were substituted for subsection (4) the following subsection:—

(4) All expenses incurred by the joint committee shall, unless the Minister on the application of any of the constituent authorities otherwise determines, be apportioned among the component areas belonging to the different constituent authorities in proportion to the rateable valuations of such areas as compared with each other.

(7) Nothing in subsections (4) or (5) of this section shall apply to proceedings under the Customs Acts.

Communica-
tions to and
from Northern
Ireland.

87. In order to secure uniformity of action every order of the Minister made under this Act shall, with all practicable speed, be communicated to the Ministry of Agriculture for Northern Ireland and every order made by that Ministry under the enactments relating to diseases of animals and forming part of the law of Northern Ireland shall with all practicable speed be communicated to the Minister.

For the purposes of section six of the Government of Ireland Act, 1920, this section shall be treated as if contained in an Act passed before the appointed day referred to in that section.

Extension of
powers of
Parliament of
Northern
Ireland.

88. For the purposes of the Government of Ireland Act, 1920, the enactment of legislation for purposes similar to the purposes of Part II of this Act shall not be deemed to be beyond the powers of the Parliament of Northern Ireland by reason only of the restriction of those powers mentioned in section four of that Act.

Repeal, transitional, short title, extent and commencement

PART III

—cont.

Repeal and
transitional
provisions.

89.—(1) The enactments set out in the Fifth Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(2) Nothing in this repeal shall affect any instrument made or other thing whatsoever done under any enactment repealed by this Act and every instrument or other thing made or done under any enactment reproduced in this Act, whether by one repeal and re-enactment or by several repeals and re-enactments, shall continue in force and, so far as it could have been made or done under this Act, shall have effect as if made or done under the corresponding provision of this Act.

(3) Any document referring to any Act or enactment repealed by this Act shall be construed as referring to this Act or the corresponding enactment in this Act.

(4) Where under any Act passed before this Act there is power to affect Acts passed or in force before a particular time and that power would, but for the passing of this Act, have included power to change the law which is reproduced in this Act, then that power shall include power to make such provision as will secure the like change in the law as reproduced in this Act notwithstanding that this Act is not an Act passed or in force before that time and notwithstanding that the terms of this Act, apart from this subsection, are not such as to render that power applicable.

(5) The mention of particular matters in this section shall not be held to prejudice or affect the general application of section thirty-eight of the Interpretation Act, 1889, with regard to the effect of repeals.

90. Any officers or servants employed by the Minister for the purpose of the execution of the enactments relating to diseases of animals who were appointed before the commencement of Part IV of the Agriculture Act, 1937 (the first day of April, nineteen hundred and thirty-eight) shall be deemed to have been appointed under section five of the Board of Agriculture Act, 1889. Transitional.

91.—(1) This Act may be cited as the Diseases of Animals Act, 1950. Short title,
extent and
commence-
ment.

(2) Sections eighty-seven and eighty-eight of this Act and the repeal of sections sixty-six of the Diseases of Animals Act, 1894, and of subsection (4) of section nineteen of the Diseases of Animals Act, 1935, shall extend to Northern Ireland, but, save as aforesaid, this Act shall not extend to Northern Ireland.

(3) This Act shall come into operation on the first day of January, nineteen hundred and fifty-one.

SCHEDULES

Sections 25 to 27
and 29 to 32.

FIRST SCHEDULE

IMPORTED ANIMALS

PART I

Slaughter at Port of Landing

1. The animals shall be landed only at a part of a port defined for that purpose by order of the Minister to be called an imported animals wharf.
2. The animals shall be landed in such manner, at such times, and subject to such supervision and control as the Commissioners of Customs direct.
3. The animals shall not be moved alive out of the wharf.

PART II

Quarantine

1. The animals shall be landed only at a part of a port defined for that purpose by order of the Minister to be called an imported animals quarantine station.
2. The animals shall be landed in such manner, at such times, and subject to such supervision and control as the Commissioners of Customs direct, and subject to such conditions in respect of the animals or of the vessel from which they are landed, as the Minister by order prescribes.
3. When landed the animals shall be placed in sheds or other receptacles in the quarantine station, prepared by the local authority or the owners of the quarantine station, or the consignees of animals, or other persons, and approved by the Minister.
4. The animals shall not be moved out of the quarantine station except on conditions prescribed by order of the Minister.
5. Notwithstanding anything in the foregoing provisions of this Part of this Schedule the provisions of this Act relating to slaughter in case of the existence of disease, and to the ownership of carcasses of such animals, shall apply to animals within an imported animals quarantine station.

PART III

Ancillary provisions

1. Notwithstanding anything in this Act, compensation shall not be payable under this Act in respect of any imported animal which is, by reason of its being diseased or suspected, or of its having been exposed to the infection of any disease, slaughtered in an imported animals wharf, an imported animals quarantine station, or an approved landing place.
2. For the case of animals found, while in an imported animals wharf or imported animals quarantine station, to be affected with pleuro-pneumonia or foot-and-mouth disease the Minister shall, by order, make such provision as he thinks necessary or expedient, and the provisions of subsections (2), (3) and (4) of section twenty-one of this Act shall have effect as if an order under this paragraph were an order made under subsection (1) of that section.

SECOND SCHEDULE

REGULATION OF MOVEMENT OF IMPORTED CATTLE

Sections 28 and
29 (3).*Licence for movement from landing place*

1.—(1) No imported cattle shall be moved from the landing place at which they are landed except under a licence granted by a veterinary inspector and in accordance with such conditions, if any, as may be imposed by the licence and with the regulations contained in this Schedule

(2) A licence granted under this provision shall be a licence authorising the cattle to be moved either to—

(a) a market specially authorised in writing by the local authority of the district for the purposes of this provision (in this Schedule referred to as “an authorised market”); or

(b) premises (including a slaughterhouse) other than a market.

(3) A local authority may, if they think fit, instead of granting an authority for the purposes of this provision in respect of the whole of a market, grant such an authority in respect of some part of a market, and where a part of a market is so authorised the provisions of this Schedule shall, unless the context otherwise requires, have effect as though references to a part of a market were substituted for references to a market.

(4) A copy of every authority granted by a local authority for the use of a market for the purposes of this provision shall be sent forthwith by the local authority to the Ministry.

*Conditions to be complied with in the case of
cattle in authorised markets*

2.—(1) Imported cattle which have been moved to an authorised market shall at all times while therein be kept separate from all animals other than imported cattle, sheep or goats, and shall not, if part only of a market is authorised for the purposes of this Schedule, be permitted, while any animals other than imported cattle, sheep or goats are in the market, to enter any part of the market other than the authorised part.

(2) No animals other than imported cattle, sheep or goats shall be permitted to enter an authorised market while it is being used as such.

(3) Imported cattle exposed for sale at an authorised market shall not be moved therefrom except with the authority and in accordance with the provisions of a licence granted by a local inspector for movement to premises, not being an authorised market, to be there detained in accordance with the provisions of this Schedule.

*Detention of imported cattle on arrival at
premises other than market*

3. When imported cattle have under a licence in that behalf been moved to premises other than an authorised market, whether from the landing place or from an authorised market, they shall on arriving at those premises be detained therein, unless previously slaughtered therein, for a period of six days from the date of arrival.

During the said period the cattle shall not be moved from the said premises except with the authority and in accordance with the provisions of a licence granted by a local inspector for movement to a slaughterhouse, to be therein detained until they are slaughtered, or to a vessel for export.

2ND SCH.
—cont.

*Temporary detention in special enclosures of cattle
awaiting sale at market*

4.—(1) Where a licence has been granted under this Schedule authorising the movement of imported cattle to an authorised market, the cattle may by virtue of that licence, subject as hereinafter provided, be temporarily detained in special lairs or other enclosures adjoining or near to the market while awaiting exposure for sale in the market:

Provided that—

- (a) the lairs or enclosures must be lairs or enclosures the use of which has been authorised by the local authority for the purpose of this provision, and the use of the lairs or enclosures for the purpose aforesaid shall be subject to such directions as may be given by or on behalf of the local authority;
 - (b) the lairs or enclosures, whilst being used for the purposes of this provision, must not be used for any animals other than imported cattle, sheep or goats in course of being moved to an authorised market under this Schedule;
 - (c) the cattle shall not remain in the lairs or enclosures for a period exceeding seventy-two hours unless otherwise authorised by the local authority in writing.
- (2) If the Minister after making enquiries is satisfied that it is for any reason inexpedient or undesirable that any lairs or other enclosures, the use of which has been authorised for the purpose aforesaid, should be used for that purpose, the Minister may direct that those lairs or enclosures shall cease to be authorised lairs or enclosures for the purpose of this provision.

Authorisations, licences and movement

5.—(1) A local authority may, for the purpose of the better execution and enforcement of the provisions of this Schedule, insert such conditions as it thinks fit in any authority granted by it for the use of a market as a specially authorised market for the purposes of the said provisions, or for the use of lairs or enclosures for the temporary detention of imported animals while awaiting exposure for sale in a specially authorised market.

The local authority may require the owner or person in charge of animals exposed at a specially authorised market or the person exposing the same, to inform an officer of the local authority or the police, at the close of the day, of the names and addresses, if known, of the persons to whom he has sold animals and of the numbers of each class sold to each person, and may require the person who applies for a licence authorising the movement of animals from the market to state the name and address, if known, of the person from whom he purchased the animals.

(2) Without prejudice to any power of revocation of the Minister, a local authority may revoke any licence or authorisation granted or issued by them under this Schedule.

(3) A licence granted under this Schedule for the movement of imported cattle shall remain in force for a period of five days, inclusive of the day on which it is granted, and no longer.

(4) A copy of every licence granted under this Schedule shall be sent forthwith by the veterinary inspector or local inspector by whom it is granted to the local authority of the district in which the authorised

market or other authorised place of destination is situate, and also, where the place of destination is not an authorised market, to the occupier of that place.

(5) Every licence granted under this Schedule shall accompany the cattle to which it relates throughout the time during which they are being moved thereunder, and shall on demand be produced by the person for the time being in charge of the cattle to any veterinary inspector or local inspector or police constable.

(6) A licence authorising the movement of imported cattle to an authorised market shall be delivered up at the entrance to the market by the person for the time being in charge of the cattle to the person appointed by the local authority for the purpose of receiving such licences, and every licence authorising imported cattle to be moved elsewhere than to an authorised market shall forthwith after the arrival of the cattle at the authorised place of destination be delivered up at, or sent by post to, the nearest police station in the district by the person then in charge of the cattle.

(7) Imported cattle to be moved under a licence granted under this Schedule shall, so far as is practicable, be moved by rail or by a mechanically propelled vehicle and shall in all cases be moved without unnecessary delay and direct to the authorised place of destination:

Provided that imported cattle shall not be moved otherwise than by rail through an area declared by the Minister to be a Foot-and-Mouth Disease Infected Area from one place outside that area to another such place.

(8) Where imported cattle are being moved by rail they shall not, until they reach the railway station from which they are to be moved to the premises specified in the licence, be removed from their trucks for any purpose other than the purpose of being fed or watered, and then only at some railway station, and if removed for that purpose shall not be taken outside the station premises.

(9) Where in the course of the movement of animals from an approved landing place a road vehicle is used without their having previously been moved by rail—

(a) the animals shall not be loaded into that vehicle except in a place approved by an inspector of the Ministry which, where practicable, shall be within the limits of the approved landing place;

(b) the animals shall not be taken out of that vehicle until they reach the place of destination specified in the licence authorising their movement, except for the purpose of being fed or watered:

(10) Nothing in the last two foregoing sub-paragraphs shall prevent the removal from its truck or other vehicle of any animal on account of any injury sustained by it or for any other necessary purpose.

Savings

6. Nothing in this Schedule shall be deemed to authorise the movement of any cattle in contravention of any order of the Minister, or any regulation of a local authority prohibiting or regulating the movement of cattle.

Interpretation

7.—(1) In this Schedule, unless the context otherwise requires—
“market” includes a fair-ground or saleyard;

2ND SCH.
—cont.

“local inspector” means a person appointed by the local authority of the district to be an inspector for the purposes of this Act;
“slaughterhouse” means any premises where animals are habitually slaughtered.

(2) Imported cattle shall cease to be deemed imported animals for the purposes of the provisions of this Schedule after the expiration of the prescribed period of six days detention.

Sections
52 and 53.

THIRD SCHEDULE

THERAPEUTIC SUBSTANCES TO WHICH PART II OF THIS ACT APPLIES

1. The substances commonly known as vaccines, sera, toxins, antitoxins and antigens.
2. The substance commonly known as salvarsan (Dioxy-diamino-arseno-benzol-di-hydrochloride) and analogous substances used for the specific treatment of infective disease.
3. Extract of the pituitary body.

Section 60.

FOURTH SCHEDULE

COMMITTEES OF LOCAL AUTHORITIES

1. Every local authority shall form and keep up a committee or committees, and may appoint the number of members by whom the powers of a committee may be exercised, and may at any time add to or diminish the number of the members of a committee, or otherwise alter the constitution thereof, and fill up or provide for the filling up of vacancies therein, or revoke the appointment thereof and appoint another committee or committees, and lay down rules for the guidance of a committee, who shall act accordingly.
2. A committee may consist wholly of members of the local authority or partly thereof, and partly of other persons, being rated occupiers in the district of the local authority, and otherwise qualified, as the local authority think fit.
3. A local authority may except in so far as it is otherwise provided by order of the Minister delegate all or any of their powers, except the power to make a rate, to a committee, with or without conditions or restrictions.
4. A local authority may revoke or alter any power given by them to a committee.
5. A local authority may, if they think fit, appoint and designate one committee as their executive committee.
6. An executive committee shall have all the powers of the local authority, except the power to make a rate, and may, if they think fit, appoint a sub-committee or sub-committees, and delegate to them (except in so far as it is otherwise provided by order of the Minister) all or any of the powers of the executive committee, with or without conditions or restrictions, and revoke or alter any such delegation, and appoint the number of members by whom the powers of the sub-committee may be exercised, and add to or diminish the number of the members of a sub-committee, or otherwise alter the constitution

4TH SCH.
—cont.

thereof, and fill up or provide for the filling up of vacancies therein, or revoke the appointment thereof and appoint another sub-committee or other sub-committees, and lay down rules for the guidance of a sub-committee who shall act accordingly.

7. Proceedings of a committee or sub-committee shall not be invalidated by any vacancy in the committee or sub-committee.

8. In case of the formation of two or more committees, they shall act according to rules laid down for their guidance by the local authority.

9. A committee, and a sub-committee of an executive committee may elect a chairman of their meetings.

10. If no chairman is elected, or if the chairman so elected is not present at the time appointed for a meeting, the members then present shall choose a chairman for that meeting.

11. A committee or sub-committee may meet and adjourn as they think proper.

12. Every question at a meeting of a committee or sub-committee shall be determined by a majority of the votes of the members including the chairman, present and voting on the question; and in case of equal division, the chairman shall have a second vote.

FIFTH SCHEDULE

Section 89.

ENACTMENTS REPEALED

Session and Chapter	Short title	Extent of repeal
57 & 58 Vict. c. 57.	The Diseases of Animals Act, 1894	The whole Act.
59 & 60 Vict. c. 15.	The Diseases of Animals Act, 1896	The whole Act.
3 Edw. 7. c. 43.	The Diseases of Animals Act, 1903	The whole Act.
6 Edw. 7. c. 32.	The Dogs Act, 1906	Section two.
9 Edw. 7. c. 26.	The Diseases of Animals Act, 1909	The whole Act.
10 Edw. 7 & 1 Geo. 5. c. 20.	The Diseases of Animals Act, 1910	The whole Act.
4 & 5 Geo. 5. c. 15.	The Exportation of Horses Act, 1914.	The whole Act.
13 Geo. 5. c. 5.	The Importation of Animals Act, 1922. (Session 2).	The whole Act.
15 & 16 Geo. 5. c. 30.	The Importation of Pedigree Animals Act, 1925.	The whole Act.
17 & 18 Geo. 5. c. 13.	The Diseases of Animals Act, 1927	The whole Act.
19 & 20 Geo. 5. c. 17.	The Local Government Act, 1929	In section one hundred and thirty-eight, in subsection (2) the words "the cattle pleuro-pneumonia account and"; In the Third Schedule, paragraph 1.

5TH SCH.
—cont.

Session and Chapter	Short title	Extent of repeal
19 & 20 Geo. 5. c. 25.	The Local Government (Scotland) Act, 1929.	In the First Schedule, in Part I, paragraph 8.
22 & 23 Geo. 5. c. 53.	The Ottawa Agreements Act, 1932	Section eight.
25 & 26 Geo. 5. c. 31.	The Diseases of Animals Act, 1935	The Third Schedule.
1 Edw. 8. & 1 Geo. 6. c. 42.	The Exportation of Horses Act, 1937.	The whole Act save section seventeen.
1 Edw. 8. & 1 Geo. 6. c. 70.	The Agriculture Act, 1937 ...	The whole Act.
		Section eighteen.
		In section nineteen, in subsection (1), the words "the Diseases of Animals Acts, 1894 to 1935, and".
		Sections twenty to twenty-five.
		Section twenty-seven.
		In section twenty-eight, subsection (1).
		In section twenty-nine, in subsection (1), paragraph (c).
		In section thirty-two the definitions of animals and poultry.
		The Second Schedule.
3 & 4 Geo. 6. c. 50.	The Agriculture (Miscellaneous War Provisions) (No. 2) Act, 1940.	Section four.
9 & 10 Geo. 6. c. 49.	The Acquisition of Land (Authorisation Procedure) Act, 1946.	In the Fourth Schedule the amendments of the Diseases of Animals Act, 1894.
10 & 11 Geo. 6. c. 43.	The Local Government (Scotland) Act, 1947.	In the Ninth Schedule, paragraph 3.
11 & 12 Geo. 6. c. 35.	The Animals Act, 1948	Part I.
11 & 12 Geo. 6. c. 52.	The Veterinary Surgeons Act, 1948.	In section twenty-three, paragraph (b).
		In the Second Schedule, paragraph 2.
12 & 13 Geo. 6. c. 37.	The Agriculture (Miscellaneous Provisions) Act, 1949.	Section thirteen.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Markets and Fairs Clauses Act, 1847	10 & 11 Vict. c. 14.
Customs Consolidation Act, 1876	39 & 40 Vict. c. 36.
Local Government Act, 1888	51 & 52 Vict. c. 41.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Police Act, 1890	53 & 54 Vict. c. 45.
Police (Scotland) Act, 1890	53 & 54 Vict. c. 67.
Diseases of Animals Act, 1894	57 & 58 Vict. c. 57.
Merchant Shipping Act, 1894	57 & 58 Vict. c. 60.
Poultry Act, 1911	1 & 2 Geo. 5. c. 11.
Government of Ireland Act, 1920	10 & 11 Geo. 5. c. 67.
Therapeutic Substances Act, 1925	15 & 16 Geo. 5. c. 60.
Agriculture Marketing Act, 1931	21 & 22 Geo. 5. c. 42.
Agriculture Marketing Act, 1933	23 & 24 Geo. 5. c. 31.
Diseases of Animals Act, 1935	25 & 26 Geo. 5. c. 31.
Agriculture Act, 1937	1 Edw. 8. & 1 Geo. 6. c. 70.
Acquisition of Land (Authorisation Procedure) Act, 1946	9 & 10 Geo. 6. c. 49.
Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947	10 & 11 Geo. 6. c. 42.
Local Government (Scotland) Act, 1947	10 & 11 Geo. 6. c. 43.
Mandated and Trust Territories Act, 1947... ..	11 & 12 Geo. 6. c. 8.
Veterinary Surgeons Act, 1948	11 & 12 Geo. 6. c. 52.
Justices of the Peace Act, 1949	12, 13 & 14 Geo. 6. c. 101.

CHAPTER 37

Maintenance Orders Act, 1950

ARRANGEMENT OF SECTIONS

PART I

JURISDICTION

Jurisdiction of English Courts

Section

1. Jurisdiction of English courts to make summary maintenance orders.
2. Jurisdiction of English summary courts to make orders for custody and maintenance of infants.
3. Jurisdiction of English courts to make affiliation orders.
4. Contributions under Children and Young Persons Act, 1933, and National Assistance Act, 1948.
5. Transfer of proceedings.